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DECLARATION OF COVENANTS AND RESTRICTIONS

OF

LAKEVIEW TOWNHOMES

THIS DECLARATION OF COVENANTS AND RESTRICTIONS OF LAKEVIEW TOWNHOMES is made this 3 day of April 1989, by ROSS IMBRUGLIA, ("DECLARANT").

1. DEFINITIONS. The terms used in this DECLARATION, and in the ARTICLES and the BYLAWS, shall have the following meanings, unless the context otherwise requires:

1.01 ARTICLES means the Articles of Incorporation of the ASSOCIATION, as same may be amended from time to time.

1.02 ASSESSMENT means the amount of money which may be assessed against an OWNER for the payment of the OWNER'S share of COMMON EXPENSES, and/or any other funds which an OWNER may be required to pay to the ASSOCIATION as provided by this DECLARATION, the ARTICLES or the BYLAWS.

1.03 ASSOCIATION means LAKEVIEW TOWNHOMES Homeowners Association, Inc., a Florida corporation not-for-profit.

1.04 BOARD means the Board of Directors of the Association.

1.05 BUILDING means any building contained within the SUBJECT PROPERTY from time to time. A BUILDING may contain one or more HOMES which may be connected by party walls and, in that event, the BUILDING shall include the HOMES within the BUILDING.

1.06 BYLAWS means the Bylaws of the ASSOCIATION, as same may be amended from time to time.

1.07 COMMON AREAS means any property, whether improved or unimproved, or any interest therein including an easement interest, which is owned by the ASSOCIATION, or which is otherwise declared to be a COMMON AREA by this DECLARATION, for the use and enjoyment of all OWNERS, their guests, licensees and invitees, and INSTITUTIONAL LENDERS. COMMON AREAS may include, but are not limited to, parks, open areas, roads, entrance ways, parking areas and other similar properties, and any recreational facilities situated thereon.

1.08 COMMON EXPENSES means all expenses properly incurred by the ASSOCIATION which include, but are not limited to, the following:

1.08.01 Expenses incurred in connection with the administration and management of the ASSOCIATION.

1.08.02 Expenses incurred in connection with the ownership, maintenance, repair, improvement or operation of the COMMON AREAS, or any portion of the UNITS, HOMES and BUILDINGS to be maintained by the ASSOCIATION as provided in this DECLARATION.

1.08.03 Expenses of obtaining, repairing or replacing personal property in connection with the performance of the ASSOCIATION'S duties.

1.08.04 Expenses of providing utility services for street lighting or for the COMMON AREAS.

1.08.05 Expenses declared to be COMMON EXPENSES by the provisions of this DECLARATION and/or by the ARTICLES or BYLAWS.

1.08.06 Any expense of prosecuting or defending any action for or against the ASSOCIATION, including attorneys' fees.

1.08.07 Assessments payable by the ASSOCIATION to any other person or entity pursuant to any recorded instrument.

1.09 COMMON SURPLUS shall mean and refer to the excess of all receipts of the ASSOCIATION over the amount of the COMMON EXPENSES.

1.10 DECLARANT shall mean and refer to the person or entity executing this DECLARATION.

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or any person or entity who may be assigned the rights of DECLARANT pursuant to a written assignment executed by the then present DECLARANT recorded in the Public Records of Broward County. In addition, in the event the holder of any mortgage executed by DECLARANT obtains title to all the SUBJECT PROPERTY then owned by DECLARANT, such mortgagee may elect to become the DECLARANT by a written election recorded in the Public Records of Broward County, and regardless of the exercise of such election, the mortgagee may appoint as DECLARANT any third party who acquires title to all of the SUBJECT PROPERTY owned by the mortgagee by written appointment recorded in the Public Records of Broward County. In any event such mortgagee and its assigns, shall not be liable for any defaults or obligations incurred by any prior DECLARANT, except as the same may be expressly assumed by the mortgagee or its assigns. In any event, the term "DECLARANT" shall not include any person or entity acquiring title only to one or more UNITS which contain a HOME, unless DECLARANT specifically assigns its rights as DECLARANT to such person or entity.

1.11 DECLARATION shall mean and refer to this Declaration of Covenants and Restriction of LAKEVIEW TOWNHOMES, as it may be amended from time to time.

1.12 HOME shall mean and refer to the residential townhouse dwelling constructed upon a UNIT, which may be connected to one or more HOMES by a common party wall.

1.13 INSTITUTIONAL LENDER means the holder, insurer or guarantor of a first mortgage encumbering a UNIT, which holder in the ordinary course of business makes, purchases, guarantees or insures residential mortgage loans, whether construction or permanent, and which is not the OWNER of the UNIT and is not owned or controlled by the OWNER. An INSTITUTIONAL LENDER may include, but is not limited to, a bank, savings bank, savings association, trust company, saving and loan association, insurance company, real estate or mortgage investment trust, pension or profit sharing plan, mortgage company, an agency of the United States or any other governmental authority, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation or any other similar type of lender generally recognized as an INSTITUTIONAL LENDER. For definition purposes only an INSTITUTIONAL LENDER shall also mean the holder of any mortgage executed by or in favor of DECLARANT, whether or not such holder would otherwise be considered an INSTITUTIONAL LENDER.

1.14 OWNER means the record fee simple owner(s) of a UNIT, including DECLARANT if DECLARANT is the record fee simple OWNER of a UNIT.

1.15 SUBJECT PROPERTY means the property which is subject to this DECLARATION, which property is situated in Broward County, Florida, and legally described as follows, plus any additional property which may be made subject to this DECLARATION and less any property which may be withdrawn from this DECLARATION pursuant to an amendment to this DECLARATION, including any and all improvements constructed thereon:

SEE EXHIBIT A ATTACHED

1.16 UNIT means any parcel of land located within the SUBJECT PROPERTY which has been or is intended to be conveyed to an OWNER and which contains or is intended to contain a HOME, and shall include any HOME constructed upon the UNIT from time to time.

2. ASSOCIATION In order to provide for the administration of the SUBJECT PROPERTY and this DECLARATION, the ASSOCIATION has been organized under the Laws of the State of Florida.

2.01 ARTICLES A copy of the ARTICLES is attached hereto as Exhibit "B." No amendment to the ARTICLES shall be deemed an amendment to this DECLARATION, and this DECLARATION shall not prohibit or restrict amendments to the BYLAWS, except as specifically provided herein.

2.02 BYLAWS A copy of the BYLAWS is attached as EXHIBIT "C." No amendment to the BYLAWS shall be deemed an amendment to this DECLARATION, and this DECLARATION shall not prohibit or restrict amendments to the BYLAWS, except as specifically provided herein.

2.03 Membership ALL OWNERS shall be member of the ASSOCIATION. Membership as to each UNIT shall be expressed in accordance with the ARTICLES and the BYLAWS.

2.04 Approval or Disapproval of Matters Whenever the decision of the OWNERS is required upon any matter, whether or not the subject of an ASSOCIATION meeting, such decisions shall be expressed in accordance with the ARTICLES and the BYLAWS.

2.05 Acts of the ASSOCIATION Unless the approval or action of the OWNERS and/or a

certain specific percentage of the BOARD is specifically required by this DECLARATION, the ARTICLES, or BYLAWS, or by applicable law, all approvals or actions required or permitted to be given or taken by the ASSOCIATION shall be given or taken by the BOARD, without the consent of the OWNERS, and the BOARD may so approve an act through the proper officers of the ASSOCIATION without a specific resolution. When an approval or action of the ASSOCIATION is permitted to be given or taken, such action or approval may be conditioned in any manner the ASSOCIATION deems appropriate, or the ASSOCIATION may refuse to take or give such action or approval without the necessity of establishing the reasonableness of such conditions or refusal, except as herein specifically provided to the contrary.

2.06 Voting On all matters as to which the OWNERS shall be entitled to vote, there shall be one vote for each UNIT, to be cast in the manner provided in the ARTICLES and the BYLAWS.

3. COMMON AREA

3.01 The COMMON AREAS shall consist of all the SUBJECT PROPERTY except for the UNITS. DECLARANT shall convey title to the COMMON AREAS to the ASSOCIATION prior to the conveyance of the first UNIT by DECLARANT, and such conveyance shall be effective upon the recording of the deed or instrument of conveyance, without acceptance by the ASSOCIATION.

3.02 USE ALL OWNERS, and their guests, licensees and invitees, and INSTITUTIONAL LENDERS shall have and are hereby given the right to use and enjoy all COMMON AREAS for the purposes for which the same are intended, subject to the terms and conditions of this DECLARATION and reasonable nondiscriminatory rules and regulations which may be adopted by the BOARD from time to time.

3.03 COMMON EXPENSES All expenses incurred by the ASSOCIATION in connection with the ownership, operation and maintenance of the COMMON AREAS shall be COMMON EXPENSES.

3.04 Additions, Alterations or Improvements The ASSOCIATION shall have the right to make additions, alterations or improvements to the COMMON AREAS, and to purchase any personal property, as it deems necessary or desirable from time to time; provided, however, that if the cost of any additions, alterations, improvements or personal property shall in any fiscal year exceed in the aggregate the sum of One hundred fifty (\$150.00) Dollars (which sum shall be increased in direct proportion to any increase in the Consumer Price Index subsequent to the date of the recording of this DECLARATION as published by the Bureau of Labor Statistics of the U.S. Department of Labor, using the U.S. City Average, All Items (1967 = 100), or any similar index if the foregoing index is discontinued) multiplied by the number of UNITS within the SUBJECT PROPERTY as of the time such additions, alterations or improvements are to be made, then such additions, alterations or improvements shall not be made without the approval of a majority of the votes of the OWNERS. The COMMON AREA cannot be mortgage or conveyed without the consent of at least two thirds (2/3) of the lot OWNERS (excluding the developer).

4. EASEMENTS Each of the following easements are hereby created, which shall run with the land and, notwithstanding any of the other provisions of this DECLARATION, may not be substantially amended or revoked in such a way as to unreasonably interfere with their proper and intended uses and purposes, and each shall survive the termination of this DECLARATION:

4.01 Utilities Easements as may be required for the installation, maintenance, repair and provision of utility services, in order to adequately serve the SUBJECT PROPERTY or any UNIT are hereby created, including but not limited to electricity, telephones, sewer, water, lighting, irrigation, drainage, television antenna and cable television facilities and electronic security. However, easements which affect more than one UNIT and which serve any other portion of the SUBJECT PROPERTY shall only be under or upon the COMMON AREAS. An OWNER shall do nothing to his UNIT which interferes with or impairs the utility services using these easements. The ASSOCIATION shall have a right of entry to each UNIT and HOME to inspect, maintain, repair or replace the utility service facilities contained under the UNIT and to remove any improvements interfering with or impairing the utility services or easement herein reserved; provided such right of entry shall not unreasonably interfere with the OWNER'S permitted use of the UNIT and, except in the event of an emergency, entry into any HOME shall be made with reasonable notice to the OWNER.

4.02 Support Every portion of a HOME contributing to the Support of a Building or an adjacent HOME shall be burdened with an easement of support for the benefit of all other HOMES in the BUILDING.

4.03 Perpetual Nonexclusive Easement in COMMON AREAS The COMMON AREAS shall be, and the same are hereby declared to be, subject to a perpetual nonexclusive easement in favor of all OWNERS, and their guests, licensees and invitees, and INSTITUTIONAL LENDERS for all proper and normal purposes and for the furnishing of services and facilities for which the same are

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reasonably intended.

4.04 Encroachments If any portion of the COMMON AREAS encroaches upon any UNIT; if any HOME encroaches upon any UNIT or upon any portion of the COMMON AREAS; or if any encroachment shall hereafter occur as a result of (i) construction or reconstruction of any improvements; (ii) settling or shifting of any improvements; (iii) any addition, alteration or repair to the COMMON AREAS made by or with the consent of the ASSOCIATION; (iv) any repair or restoration of any improvements (or any portion thereof) or any HOME after damage by fire or other casualty or any taking by condemnation or eminent domain proceedings of all or any portion of any HOME or the COMMON AREAS; or (v) any nonpurposeful or non-negligent act of an OWNER, except as may be authorized by the ASSOCIATION; then, in any such event a valid easement shall exist for such encroachment and for the maintenance of the same so long as the improvements shall stand.

4.05 Easements for Overhang An easement for overhanging troughs or gutters, downspouts and the discharge therefrom of rainwater and the subsequent flow thereof over the UNITS and the COMMON AREAS is hereby created.

4.06 Service Easement Easements are hereby created in favor of governmental and quasi-governmental authorities, utility companies, cable television companies, ambulance or emergency vehicle companies, and mail and parcel carrier services over and across all roads existing from time to time within the SUBJECT PROPERTY, and over, under, on and across the COMMON AREAS, as may be reasonably required to permit the foregoing providers, and their agents and employees, to service the SUBJECT PROPERTY and the OWNERS.

4.07 Easements for Pedestrian and Vehicular Traffic Easements shall exist for pedestrian traffic over, through and across sidewalks, paths, lanes and walks, as the same may from time to time exist upon the COMMON AREAS and be intended for such purpose; and for pedestrian and vehicular traffic and parking over, through, across and upon such portion of the COMMON AREA as may from time to time be paved and intended for such purpose, same being for the use and benefit of all OWNERS, and their guests, licensees and invitees, and INSTITUTIONAL LENDERS.

4.08 Easement for Parking The ASSOCIATION shall permanently assign to each OWNER one (1) motor vehicle parking space for each UNIT, and shall prescribe rules and regulations governing the use of automobile parking spaces throughout the SUBJECT PROPERTY, and may, from time to time, modify, alter, amend, rescind and augment any such rules and regulations. The COMMON AREAS shall be, and the same are hereby declared to be, subject to a perpetual and exclusive easement in favor of each respective OWNER, and their guests, licensees and invitees, and each respective INSTITUTIONAL LENDER, for the use of the assigned parking spaces, together with the right of ingress and egress to and from said parking spaces.

4.09 Additional Easements The ASSOCIATION, on behalf of all OWNERS, shall have the right to (i) grant and declare additional easements over, upon, under and/or across the COMMON AREAS in favor of all OWNERS, and their guests, licensees and invitees and INSTITUTIONAL LENDERS, or in favor of any other person, entity, public or quasi-public authority or utility company, or (ii) modify, relocate, abandon or terminate existing easements within or outside of the SUBJECT PROPERTY in favor of the ASSOCIATION and/or all OWNERS, and their guests, licensees and invitees and INSTITUTIONAL LENDERS, or in favor of any person, entity, public or quasi-public authority, or utility company as the ASSOCIATION may deem desirable for the proper operation and maintenance of the SUBJECT PROPERTY, or an portion thereof, or for the health, safety or welfare of all OWNERS, or for any other reason or purpose. So long as such additional easements, or the modification, relocation or abandonment of existing easements, will not unreasonably and adversely interfere with the use of UNITS for dwelling purposes, no joinder of any OWNER or INSTITUTIONAL LENDER shall be required or, if same would unreasonably and adversely interfere with the use of any UNIT for dwelling purposes, only the joinder of those OWNERS and INSTITUTIONAL LENDERS of UNITS so affected shall be required. To the extent required, all OWNERS hereby irrevocably appoint the ASSOCIATION as their attorney-in-fact for the foregoing purposes.

5. MAINTENANCE OF THE SUBJECT PROPERTY.

5.01 By the ASSOCIATION. The ASSOCIATION shall operate, maintain, repair and replace, as a COMMON EXPENSE, the following portions of the SUBJECT PROPERTY:

5.01.01 COMMON AREAS The ASSOCIATION shall maintain all COMMON AREAS or other areas for which the duty to maintain has been delegated to and accepted by the ASSOCIATION, and all parking areas, landscaping and improvements contained thereon from time to time.

5.01.02 Landscaping The ASSOCIATION shall be responsible for the maintenance and care of all landscaping throughout the SUBJECT PROPERTY and in the unpaved portion of contiguous road right-of-ways, except for any landscaping contained within any UNIT. The ASSOCIATION shall

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plant, remove and/or replace sod, plants, flowers, shrubbery and trees when in the sole discretion of the ASSOCIATION the same is appropriate and in the best interest of the SUBJECT PROPERTY. The ASSOCIATION's responsibility shall include mowing, trimming, pruning, edging, fertilizing and weed, insect and disease control.

5.01.03 Water Sprinkler System The ASSOCIATION shall maintain and repair pipes and water sprinkler systems throughout the SUBJECT PROPERTY, except for pipes and sprinkler systems serving the area of any UNIT.

5.01.04 Utility Services The ASSOCIATION shall maintain all utility services affecting the SUBJECT PROPERTY not owned by any governmental authority or utility company, except for utility services located within any UNIT which serve only the UNIT or the HOME on the UNIT.

5.01.05 Building Exteriors, Fences and Driveways The ASSOCIATION shall maintain the exterior wall and roofs of all BUILDINGS.

5.01.06 Other Property The ASSOCIATION shall have the right to maintain such other areas within or contiguous to the SUBJECT PROPERTY as the ASSOCIATION determines from time to time is in the best interest of the OWNERS or INSTITUTIONAL LENDERS, and the cost of any such maintenance shall be a COMMON EXPENSE.

5.01.07 Damage by OWNER Notwithstanding the foregoing, if any such maintenance is required due to the willful act or omission of any OWNER, or their guests, licensees or invitees, the OWNER shall be responsible for the cost of such maintenance, and shall be assessed for such cost by the ASSOCIATION. If any such maintenance is required due to the negligent act or omission of any OWNER, or their guest, licensees or invitees, the OWNER shall be responsible for the cost of such maintenance in accordance with principles of applicable law pertaining to such acts or omissions.

5.03 By The OWNERS Each OWNER shall maintain his HOME and all improvements upon his UNIT in an attractive, first class condition, except those portions of his HOME and UNIT which are to be maintained by the ASSOCIATION in accordance with the provisions of this DECLARATION. Included within the responsibility of the OWNER shall be windows, screens, sliding glass doors, doors on the exterior of the HOME and the framing for same, any fence upon the UNIT or serving the HOME and all landscaping and improvements within the UNIT, all of which shall be maintained by the OWNER in good condition and repair and in a neat and attractive manner.

6. INSURANCE The insurance, other than title insurance, which shall be carried upon the SUBJECT PROPERTY and the HOMES shall be governed by the following provisions.

6.01 PURCHASE, CUSTODY AND PAYMENT OF POLICIES

6.01.01 Purchase All insurance policies covering the SUBJECT PROPERTY shall be purchased by the ASSOCIATION and shall be issued by an insurance company authorized to do business in the State of Florida.

6.01.02 Approval by INSTITUTIONAL LENDERS Each INSTITUTIONAL LENDER will have the right upon reasonable notice to the ASSOCIATION to review and approve, which approval shall not be unreasonably withheld, the form, content, insurer, limits and coverage of all insurance purchased by the ASSOCIATION, and to require the ASSOCIATION to purchase insurance complying with the reasonable and customary requirements of any INSTITUTIONAL LENDERS. In the event of a conflict between INSTITUTIONAL LENDERS, the decision of the INSTITUTIONAL LENDER holding mortgages encumbering UNITS which secure the largest aggregate outstanding principal balance shall control.

6.01.03 Named Insured The named insured on all policies purchased by the ASSOCIATION shall be the ASSOCIATION, individually and as agent for all OWNERS, without naming them, and as agent for all INSTITUTIONAL LENDERS, without naming them.

6.01.04 Custody of Policies and Payment of Proceeds All policies shall provide that payments for losses made by the insurer on account of casualty to any portion of the SUBJECT PROPERTY shall be paid to the Insurance Trustee, and all policies and endorsements for casualty losses shall be deposited with the Insurance Trustee.

6.01.05 Copies to OWNERS or INSTITUTIONAL LENDERS One (1) copy of each insurance policy or a certificate evidencing the same, and all endorsements thereon, shall be furnished by the ASSOCIATION to each OWNER or INSTITUTIONAL LENDER who in writing requests the ASSOCIATION to provide it with such policies.

6.01.06 Personal Property and Liability The ASSOCIATION shall not maintain liability or personal property insurance for the OWNERS. OWNERS may obtain insurance at their own expense and

at their own discretion for their personal property, personal liability, living expenses and for improvements made to their UNIT or HOME.

6.01.07 Deductibles Any deductible or exclusion under an insurance policy purchased by the ASSOCIATION shall be a COMMON EXPENSE, and shall not exceed Five Hundred (\$500.00) Dollars or such other sum as is approved by a majority of the OWNERS, so long as the same is approved by a majority of the INSTITUTIONAL LENDERS.

6.02 Coverage

6.02.01 Casualty ALL HOMES, BUILDINGS and improvements situated upon the SUBJECT PROPERTY, and all personal property of the ASSOCIATION, are to be insured in an amount equal to one hundred (100%) percent of the then current replacement cost (or, the maximum coverage available under the National Flood Insurance Program in the case of flood insurance coverage), excluding foundation and excavating costs and other items normally excluded from coverage, as determined annually by the ASSOCIATION. Prior to obtaining any casualty insurance or renewal thereof, the ASSOCIATION shall obtain an appraisal from a hazard insurance company or otherwise of the full replacement cost of the HOMES and improvements upon the SUBJECT PROPERTY and all personal property of the ASSOCIATION, without deduction for depreciation, for the purposes of determining the amount of casualty insurance to be obtained pursuant to this Paragraph. Such coverage shall afford protection against:

6.02.01.01 Loss or damage occasioned by fire and other hazards covered by a standard "Extended Coverage" endorsement;

6.02.01.02 Loss or damage occasioned by flood, water surge, tidal wave or similar catastrophe;

6.02.01.03 Such other risks as from time to time shall be customarily insured against with respect to buildings and improvements similar in construction, location and use, including but not limited to vandalism, malicious mischief and all other risks normally covered by a standard "All Risk" endorsement;

6.02.01.04 Where and when available, the following endorsements shall be added to coverage: "Agreed Amount and Inflation Guard" Endorsement, "Demolition Cost" Endorsement, "Contingent Liability from Operation of Building Laws" Endorsement and "Increased Cost of Construction" Endorsement.

6.02.01.05 The hazard insurance shall cover, among other things, all of the HOMES including but not limited to walls, doors, stairways, kitchen cabinets and fixtures, built-in kitchen appliances, electrical fixtures and bathroom cabinets and fixtures. The hazard insurance shall not include any improvements made in any HOME by an OWNER in addition to or having a value in excess of that originally supplied by DECLARANT, or any furniture, furnishings or other personal property installed or brought into a HOME, from time to time, by the OWNERS, or their guests, licensees or invitees.

6.02.02 Liability Comprehensive general public liability insurance shall be maintained by the ASSOCIATION insuring against loss or damage resulting from accidents or occurrences on or about or in connection with the COMMON AREAS, any work, matters or things related to the COMMON AREAS or this DECLARATION and any legal liability resulting from lawsuits related to employment or similar service contracts to which the ASSOCIATION is a party, with such coverage as shall be required by the ASSOCIATION, but with a combined single liability limit of not less than One Million (\$1,000,000.00) Dollars for bodily injury, death or property damage arising out of a single occurrence, and with cross liability endorsement to cover liabilities of the OWNERS as a group to any OWNER.

6.02.03 Workmen's Compensation Workmen's compensation coverage shall be maintained as shall be required to meet the requirements of the law.

6.02.04 Fidelity Bonds The ASSOCIATION shall obtain blanket fidelity bonds for all officers, directors, trustees and employees of the ASSOCIATION and all other persons handling or responsible for funds of or administered by the ASSOCIATION. The total amount of fidelity bond coverage shall be for the maximum funds that will be in the custody of the ASSOCIATION at any time, but in no event shall be less than a sum equal to three (3) months aggregate ASSESSMENTS plus the reserve funds held by the ASSOCIATION.

6.02.05 Other Insurance The ASSOCIATION shall maintain such other insurance as it shall determine from time to time to be desirable or as may reasonably be required by an INSTITUTIONAL LENDER pursuant to Paragraph 6.01.02, and as is customarily obtained with respect to HOMES and improvements similar in construction, location and use to those contained within the SUBJECT

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PROPERTY, such as, where applicable, contractual and all written contract insurance, employer's liability insurance and comprehensive automobile liability insurance.

6.02.06 Insurer's Waiver When appropriate, each of the foregoing policies shall waive the insurer's right to: (i) subrogation against the ASSOCIATION and against the OWNERS individually and as a group; (ii) any prorata clause that reserves to the insurer the right to pay only a fraction of any loss if other insurance carriers have issued coverage upon the same risk; and (iii) avoid liability for a loss that is caused by an act of one or more directors of the ASSOCIATION or by one or more OWNERS; and shall provide that such policies may not be cancelled or substantially modified (except for increases in coverage or liability limits) without at least ten (10) days prior written notice to the ASSOCIATION and to each OWNER and INSTITUTIONAL LENDER.

6.03 Premiums for insurance policies purchased by the ASSOCIATION shall be paid by the ASSOCIATION as a COMMON EXPENSE, except that any increase in any insurance premium occasioned by misuse, occupancy or abandonment of a HOME by a particular OWNER, or their guests, licensees or invitees, shall be assessed against and paid by that OWNER.

6.04 Insurance Trustee All casualty insurance policies purchased by the ASSOCIATION shall provide that all proceeds covering casualty losses shall be paid to any bank or trust company in the vicinity of the SUBJECT PROPERTY with trust powers, as may be designated by the ASSOCIATION, as Trustee, which Trustee is herein referred to as the "Insurance Trustee." The Insurance Trustee shall not be liable for payment of premiums or for the renewal or sufficiency of the policies or for the failure to collect any insurance proceeds. The duty of the Insurance Trustee shall be to receive such proceeds as are paid and hold the same in trust for the purposes elsewhere stated herein and for the benefit of the OWNERS and their respective mortgagees in the following shares, which shares need not be set forth in the records of the Insurance Trustee. Notwithstanding the foregoing, unless the ASSOCIATION so determines or unless any INSTITUTIONAL LENDER otherwise requires by written notice to the ASSOCIATION, no Insurance Trustee will be required, and all references in this DECLARATION to an Insurance Trustee shall refer to the ASSOCIATION where the context requires.

6.04.01 COMMON AREAS Proceeds on account of damage to COMMON AREAS shall be held in as many undivided shares as there are UNITS, the share of each OWNER being equal.

6.04.02 HOMES Proceeds on account of damage to HOMES shall be held in the following undivided shares:

6.04.02.01 When the HOMES are to be repaired and restored, for the OWNERS of damaged HOMES in proportion to the cost of repairing the damage suffered by each OWNER.

6.04.02.02 When the HOMES are not to be repaired and restored as elsewhere provided, for the OWNERS of all damaged HOMES, each OWNER's share being equal.

6.04.02.03 In the event a mortgagee endorsement has been issued as to a HOME, the share of the OWNER shall be held in trust for the INSTITUTIONAL LENDER and the OWNER as their interests may appear. However, no INSTITUTIONAL LENDER shall have any right to determine or participate in the determination as to whether or not any damage property shall be reconstructed or repaired, and no INSTITUTIONAL LENDER shall have any right to apply or have applied to the reduction of a mortgage debt any insurance proceeds except distributions thereof made to the OWNER and INSTITUTIONAL LENDER pursuant to the provisions of this DECLARATION.

6.05 Distribution of Proceeds of insurance policies received by the Insurance Trustee shall be distributed to, or for the benefit of, the beneficial owners in the following manner:

6.05.01 Expense of the Trust All expenses of the Insurance Trustee shall be first paid or provisions made therefor.

6.05.02 Reconstruction or Repair If the damage for which the proceeds are paid is to be repaired or reconstructed, the remaining proceeds shall be paid to defray the cost thereof as elsewhere provided. Any proceeds remaining after defraying such cost shall be distributed to the beneficial owners, remittances to OWNERS and INSTITUTIONAL LENDERS being payable jointly to them. This is a covenant for the benefit of any INSTITUTIONAL LENDER and may be enforced by any INSTITUTIONAL LENDER.

6.05.03 Failure to Reconstruct or Repair If it is determined in the manner elsewhere provided that the damaged HOMES for which the proceeds are paid shall not be reconstructed or repaired, the remaining proceeds shall be distributed to the OWNERS of the damaged HOMES, remittances to OWNERS and INSTITUTIONAL LENDERS being payable jointly to them. This is a covenant for the benefit of any INSTITUTIONAL LENDER and may be enforced by any INSTITUTIONAL

LENDER.

6.05.04 Certificate In making distribution to OWNERS and INSTITUTIONAL LENDERS, the Insurance Trustee may rely upon a certificate of the ASSOCIATION executed by the President and Secretary as to the names of the OWNERS and INSTITUTIONAL LENDERS together with their respective shares of the distribution.

6.05.05 Limitation on Use of Proceeds In no event may any hazard insurance proceeds for losses to any portion of the SUBJECT PROPERTY be used for other than expenses of the Insurance Trustee or for repair, replacement or reconstruction of any damage, without the approval of at least eighty (80%) percent of the votes of the OWNERS.

6.06 ASSOCIATION as Agent The ASSOCIATION is hereby irrevocably appointed agent for each OWNER and INSTITUTIONAL LENDER, and for each owner of any other interest in the SUBJECT PROPERTY, to adjust all claims arising under insurance policies purchased by the ASSOCIATION and to execute and deliver releases upon the payment of claims.

6.07 Notice of Possible Inadequate Insurance Coverage In any legal action in which the ASSOCIATION may be exposed to liability in excess of insurance coverage protecting it and the OWNERS, the ASSOCIATION shall give notice of any excess exposure within a reasonable time to all OWNERS who may be exposed to the liability and they shall have the right to intervene and defend.

6.08 Inspection of Insurance Policies A copy of each insurance policy purchased by the ASSOCIATION shall be made available for inspection by any OWNER or INSTITUTIONAL LENDER at reasonable times.

7. RECONSTRUCTION OR REPAIR AFTER CASUALTY

7.01 Determination to Reconstruct or Repair If any part of the SUBJECT PROPERTY is damaged or destroyed by casualty, whether or not the damage will be repaired shall be determined in the following manner:

7.01.01 COMMON AREAS If the damaged improvement is contained within a COMMON AREA, the damaged property shall be reconstructed or repaired unless seventy-five percent (75%) of the OWNERS vote to the contrary.

7.01.02 HOMES In the event of damage to or destruction of any HOMES as a result of fire or other casualty, except as hereinafter provided, the ASSOCIATION shall arrange for the prompt repair and restoration of the HOMES(S) (including any damaged bathroom and kitchen fixtures equivalent in value to that initially installed by the DECLARANT, but not including improvements having a value in excess of that originally installed by DECLARANT, or furniture, furnishings or other personal property supplied by any OWNER or tenant of an OWNER) and the Insurance Trustee shall disburse the proceeds of all insurance policies to the contractors engaged in such repair and restoration in appropriate progress payments. Notwithstanding the foregoing, if all of the HOMES within any BUILDING are substantially damaged or destroyed, then within thirty (30) days after such damage or destruction, a special meeting of the OWNERS shall be called to determine whether the damage or destruction will be repaired and restored. The damage or destruction shall be repaired and restored unless seventy-five percent (75%) of the OWNERS, including all of the OWNERS of the damaged or destroyed HOMES, vote to the contrary. In the event the damaged HOMES are not to be repaired or restored, the fee simple title to each UNIT containing a damaged HOME which is not to be repaired or restored shall be vested in the ASSOCIATION. By accepting a deed conveying a UNIT, each OWNER covenants for himself, his heirs, personal representatives, successors and assigns to execute any and all instruments which may be reasonably required by the ASSOCIATION to carry out the terms of this Paragraph, including, without limitation, a deed conveying all of the OWNER'S rights, title and interest in and to his UNIT to the ASSOCIATION. In such event, the ASSOCIATION shall diligently pursue selling all of the UNITS which contain HOMES which are not to be repaired or restored, and the net proceeds from such sale, together with the net proceeds of insurance resulting from damage or destruction shall be divided among all the OWNERS of such damaged HOMES, each OWNER to receive an equal amount of such net proceeds, provided, however, that no payment shall be made to an OWNER until there has first been paid off out of his share of such funds all liens on his UNIT in the order of priority of such liens. The Insurance Trustee may rely upon a certificate of the ASSOCIATION made by its President and Secretary to determine whether or not any damaged HOMES are to be reconstructed or repaired.

7.02 Plans and Specifications Any reconstruction or repair must be substantially in accordance with the plans and specifications for the original improvements, or if not, then according to plans and specifications approved by seventy-five percent (75%) of the OWNERS, and if the damaged property is one or more HOMES, by the OWNERS of all such HOMES (and their respective INSTITUTIONAL LENDERS) the plans for which are to be altered, which approval shall not be unreasonably withheld. Any reconstruction or repair must be in accordance with the

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ordinances of the City of Deerfield Beach, and must be approved by the City of Deerfield Beach, or its appropriate review Committee where required by such ordinances.

7.03 Responsibility If the damage is only to those parts of a HOME for which the responsibility of maintenance and repair is that of the OWNER, the OWNER shall be responsible for reconstruction and repair after casualty. In all other instances, the responsibility of reconstruction and repair after casualty shall be that of the ASSOCIATION.

7.04 Estimates of Cost Immediately after a determination is made to rebuild or repair damage to property for which the ASSOCIATION has the responsibility of reconstruction and repair, the ASSOCIATION shall obtain reliable and detailed estimates of the cost to rebuild or repair from one or more reliable licensed contractors, and shall submit copies of all acceptable estimates to the Insurance Trustee.

7.05 ASSESSMENTS If the proceeds of insurance are not sufficient to defray the estimate cost of reconstruction and repair by the ASSOCIATION, or if at any time during or after the reconstruction and repair the funds for the payment of the cost thereof are insufficient, such deficiency shall be paid by the ASSOCIATION as a COMMON EXPENSE and ASSESSMENTS shall be made equally against all OWNERS, in sufficient amounts to provide funds to pay such costs.

7.06 Deductible Provision The funds necessary to cover any deductible amount under an insurance policy against which a claim is made shall be a common expense.

7.07 Construction Funds The funds for payment for costs of reconstruction and repair after casualty which shall consist of proceeds of insurance held by the Insurance Trustee and funds collected by the ASSOCIATION from ASSESSMENTS against OWNERS shall be disbursed in payment of such costs in the following manner:

7.07.01 ASSOCIATION If the total ASSESSMENTS made by the ASSOCIATION in order to provide funds for payment of costs of reconstruction and repair which is the responsibility of the ASSOCIATION is more than Twenty-five Thousand (\$25,000.00) Dollars, then the sums paid upon such ASSESSMENT shall be deposited by the ASSOCIATION with the Insurance Trustee. In all other cases, the ASSOCIATION shall hold the sums paid upon such ASSESSMENTS and disburse the same in payment of the costs of reconstruction and repair.

7.07.02 Insurance Trustee the proceeds of insurance collected on account of a casualty and the sums deposited with the Insurance Trustee by the ASSOCIATION from collections of ASSESSMENTS against OWNERS on account of such casualty shall constitute a construction fund which shall be disbursed in payment of the costs of reconstruction and repair in the following manner and order:

7.07.02.01 ASSOCIATION - Lesser Damage If the amount of the estimated costs of reconstruction and repair which is the responsibility of the ASSOCIATION is less than Twenty-five Thousand (\$25,000.00) Dollars, then the construction funds shall be disbursed in payment of such costs upon the order of the ASSOCIATION; provided, however, that upon request to the Insurance Trustee by an INSTITUTIONAL LENDER which is a beneficiary of an insurance policy, the proceeds of which are included in the construction fund, such fund shall be disbursed in the manner hereafter provided for the reconstruction and repair of major damage.

7.07.02.02 ASSOCIATION - Major Damage If the amount of the estimated costs of reconstruction and repair which is the responsibility of the ASSOCIATION is more than Twenty-five Thousand (\$25,000.00) Dollars, then the construction funds shall be disbursed in payment of such costs in the manner required by the ASSOCIATION and upon approval of an architect qualified to practice in the State of Florida and employed by the ASSOCIATION to supervise the work.

7.07.02.03 Reserve Funds It shall be presumed that the first monies disbursed in payment of the costs of reconstruction and repair shall be from insurance proceeds. If there is a balance of insurance proceeds after payment of the costs of reconstruction and repair which is the responsibility of the ASSOCIATION, such balance shall be retained by the ASSOCIATION and maintained as a part of the reserve funds.

7.07.02.04 Certificate Notwithstanding the provisions herein, the Insurance Trustee shall not be required to determine whether or not sums paid by OWNERS upon ASSESSMENTS shall be deposited by the ASSOCIATION with the Insurance Trustee, nor to determine whether the disbursements from the construction fund are to be upon the order of the ASSOCIATION or upon approval of an architect or otherwise, nor whether a disbursement is to be made from the construction fund, nor to determine the payee nor the amount to be paid, nor to determine whether surplus funds to be distributed are less than the ASSESSMENTS paid by OWNERS. Instead, the Insurance Trustee may rely upon a certificate of the ASSOCIATION executed by its President and Secretary as to any or all of such matters and stating that the sums to be paid are due and

properly payable, and stating the name of the payee and the amount to be paid; provided, however, that when an INSTITUTIONAL LENDER is required to be named as payee hereunder, the Insurance Trustee shall also name the INSTITUTIONAL LENDER as payee of any distribution of insurance proceeds to an OWNER and further provided that when the ASSOCIATION or an INSTITUTIONAL LENDER which is the beneficiary of any insurance policy the proceeds of which are included in the construction fund so requires, the approval of an architect named by the ASSOCIATION shall first be obtained by the ASSOCIATION for disbursements in payment of costs of reconstruction and repair.

8. ASSESSMENT FOR COMMON EXPENSES

8.01 Each OWNER shall be responsible for payment to the ASSOCIATION of ASSESSMENTS for COMMON EXPENSES for each UNIT owned, which amount shall be assessed to the OWNER as described below. An OWNER shall be liable for unpaid ASSESSMENTS for COMMON EXPENSES owed by the prior OWNER of the OWNER'S UNIT except for any ASSESSMENTS owed by DECLARANT.

8.02 ASSESSMENTS for COMMON EXPENSES assessed against each UNIT shall be equal. The full ASSESSMENT for COMMON EXPENSES as to each UNIT upon which a HOME is constructed shall commence on the first day of the second full calendar month after a certificate of occupancy for the HOME is issued by the controlling governmental authority or upon the conveyance of the UNIT by DECLARANT, whichever occurs first.

8.03 In addition to ASSESSMENTS for COMMON EXPENSES, the initial OWNER acquiring title from DECLARANT to a HOME shall pay to the ASSOCIATION a contribution to a working capital fund of the ASSOCIATION in an amount equal to three (3) months ASSESSMENTS for COMMON EXPENSES, which shall be in addition to the OWNER'S responsibility for ASSESSMENTS for COMMON EXPENSES, and shall be held in a continuing operating fund. The working capital fund shall be used by the ASSOCIATION for start-up expenses or otherwise as the ASSOCIATION shall determine from time to time and need not be restricted or accumulated.

8.04 Until such time as DECLARANT owns fewer than twenty-five percent (25%) of the UNITS within the SUBJECT PROPERTY, or until three (3) years from the date of the first conveyance of a UNIT by DECLARANT, whichever is earlier, DECLARANT shall adopt a budget for each fiscal year which shall estimate all of the COMMON EXPENSES to be incurred by the ASSOCIATION during the fiscal year. DECLARANT shall then establish the ASSESSMENT for COMMON EXPENSES for each UNIT, and shall notify each OWNER in writing of the amount, frequency and due dates of the ASSESSMENTS for COMMON EXPENSES. From time to time during the fiscal year, DECLARANT may modify the budget and, pursuant to the revised budget or otherwise, DECLARANT may, upon written notice to the OWNERS, change the amount, frequency and/or due dates of the ASSESSMENTS for COMMON EXPENSES. From and after the date DECLARANT owns fewer than twenty-five percent (25%) of the UNITS within the SUBJECT PROPERTY, or three (3) years from the date of the first conveyance of a UNIT by DECLARANT, whichever is earlier, the annual ASSESSMENT may not be increased more than five percent (5%) above the annual ASSESSMENT for the previous fiscal year without the affirmative vote of two-thirds (2/3) of the members of the ASSOCIATION who are present or represented and entitled to vote, either in person or by proxy, at a meeting duly called for this purpose. From and after the date DECLARANT owns fewer than twenty-five percent (25%) of the UNITS within the SUBJECT PROPERTY, or three (3) years from the date of the first conveyance of a UNIT by DECLARANT, whichever is earlier, the ASSOCIATION may establish the annual ASSESSMENT at any amount not in excess of five percent (5%) above the annual ASSESSMENT for the previous fiscal year. Written notice of any meeting called for the purpose of increasing annual ASSESSMENTS shall be sent to all members of the ASSOCIATION entitled to vote not less than thirty (30) days nor more than sixty (60) days in advance of such meeting. At the first such meeting called, the presence of members of the ASSOCIATION or proxies entitled to cast sixty percent (60%) of votes shall constitute a quorum. Notwithstanding the foregoing, if the required quorum is not present, another meeting may be called subject to the same notice requirement, and the presence of members or proxies entitled to cast thirty percent (30%) of votes shall constitute a quorum; however, no such subsequent meeting shall be held more than sixty (60) days following the preceding meeting.

8.05 If the expenditure of funds for COMMON EXPENSES exceeds the funds produced by ASSESSMENTS for COMMON EXPENSES, the ASSOCIATION may make special ASSESSMENTS for COMMON EXPENSES, which shall be levied in the same manner as hereinbefore provided for regular ASSESSMENTS, and shall be payable in the manner determined by the ASSOCIATION, as stated in the notice of any special ASSESSMENTS for COMMON EXPENSES. In no event shall special ASSESSMENTS be levied for the purpose of making capital improvements to the COMMON AREAS for three (3) years from the date that the first UNIT was conveyed by DECLARANT or for so long as DECLARANT owns at least twenty-five percent (25%) of the UNITS within the SUBJECT PROPERTY.

8.06 In the event any ASSESSMENTS for COMMON EXPENSES are made payable in equal periodic payments, as provided in the notice from the ASSOCIATION, such periodic payments shall

automatically continue to be due and payable in the same amount and frequency unless and until the notice specifically provides that the periodic payments will terminate or change upon the occurrence of a specified event or date or the payment of a specified amount, or the ASSOCIATION notifies the OWNER in writing of a change in the amount and/or frequency of the periodic payments. In no event shall any ASSESSMENTS for COMMON EXPENSES be due less than ten (10) days from the date of the notification of such ASSESSMENTS.

8.07 Until such time as DECLARANT no longer owns any UNIT, or, notwithstanding the provisions of Paragraph 8.02 of this DECLARATION, until DECLARANT notifies the ASSOCIATION in writing that DECLARANT elects to pay ASSESSMENTS for COMMON EXPENSES equally as in the case of any other OWNER, whether or not a UNIT owned by DECLARANT contains a HOME, DECLARANT shall not be liable for ASSESSMENTS for COMMON EXPENSES for any UNITS owned by DECLARANT, but in lieu thereof, DECLARANT shall be responsible for all COMMON EXPENSES in excess of the ASSESSMENTS for COMMON EXPENSES receivable from the other OWNERS, including amounts payable to the working capital fund. The obligation of DECLARANT to pay the excess COMMON EXPENSES of the ASSOCIATION shall be deemed an ASSESSMENT, and if DECLARANT fails to pay same the ASSOCIATION may record a claim of lien for such ASSESSMENT against all of the SUBJECT PROPERTY owned by DECLARANT, and may foreclose same, all as provided in Paragraph 11.01.03 and 11.01.04 of this DECLARATION.

9. USE RESTRICTION

9.01 HOMES Only one HOME may be constructed on any UNIT.

9.02 No Trade or Business No trade, business, profession, or commercial activity, or any other nonresidential use, shall be conducted upon any portion of the SUBJECT PROPERTY or within any UNIT or HOME.

9.03 Leasing All leases of a HOME must be in writing and specifically be subject to this DECLARATION, the ARTICLES and the BYLAWS, and copies delivered to the ASSOCIATION prior to occupancy by the tenant(s). Without the prior written consent of the ASSOCIATION, which may be withheld in the ASSOCIATION's sole discretion, no lease shall be for a period of less than one (1) month. Any person(s) occupying a HOME in the absence of the OWNER shall be deemed occupying the HOME pursuant to a lease, regardless of the presence or absence of consideration with respect to the occupancy. Notwithstanding the foregoing, an OWNER may permit members of his immediate family to occupy his HOME as a guest in his absence for periods of less than one (1) month, provided the BOARD is given prior written notice of such occupancy.

9.04 Alterations, Additions or Improvements Architectural control over the SUBJECT PROPERTY shall be vested in an Architectural Control Committee. No OWNER shall make, install, place or remove any building, fence, wall, pool, spa, landscaping or any other alteration, addition, improvement or change of any kind or nature whatsoever, to, in or upon any portion of the COMMON AREAS, the OWNER's UNIT, or the exterior of the OWNER's HOME, unless the OWNER first obtains the written consent of the Architectural Control Committee to such addition, alteration, improvement or change. In the event that the Architectural Control Committee does not restrict the modification in writing within a reasonable period of time, it shall be deemed approved. For so long as DECLARANT owns any UNITS, DECLARANT shall constitute and be the Architectural Control Committee. After DECLARANT no longer owns any UNIT on the SUBJECT PROPERTY, the ASSOCIATION shall appoint an Architectural Control Committee comprised of three (3) members, one of whom shall be a member of the BOARD and the remaining two (2) of whom shall be members of the ASSOCIATION. Any request by an OWNER for consent by the Architectural Control Committee to any addition, alteration, improvement or change shall be in writing and shall be accompanied by plans and specifications or other details as the Architectural Control Committee may deem reasonably necessary in connection with its determination to whether or not it will approve any such addition, alteration, improvement or change. The Architectural Control Committee's approval as to same shall not be unreasonably withheld, but may be withheld based upon aesthetic considerations. All additions, alterations, improvements or changes made by an OWNER shall be made in compliance with all laws, rules, ordinances and regulations of all governmental authorities having jurisdiction, and with any conditions imposed by the Architectural Control Committee with respect to design, structural integrity, aesthetic appeal, construction details or otherwise. An OWNER making or causing to be made any additions, alterations, improvements or changes agrees, and shall be deemed to have agreed, for such OWNER, and the OWNER's heirs, personal representatives, successors and assigns, as appropriate, to hold the Architectural Control Committee and all other OWNERS harmless from any liability or damage to the SUBJECT PROPERTY and expenses arising therefrom. Each OWNER shall be solely responsible for and shall maintain all exterior additions, alterations, improvements or changes made by the OWNER or his predecessor in a first class condition and in good working order as originally approved by the Architectural Control Committee. The foregoing shall not be deemed to prohibit repairs or replacements required to be made by the OWNER, provided such repairs or replacements are in conformity, including materials and colors, with that originally installed on the UNIT or last approved by the Architectural Control Committee.

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approved by the Architectural Control Committee.

9.05 Prohibited Improvement Without limiting the provisions of Paragraph 9.04, no OWNER shall permanently enclose any screened-in porch or patio, and no OWNER shall install any fence or wall, except for a uniform fence or wall approved by the Architectural Control Committee.

9.06 Outside Storage of Personal Property The personal property of the OWNER shall be stored inside the HOME or the fenced-in area of the OWNER's UNIT, and shall not be left outside of the fenced-in area overnight, with the exception of the OWNER's permitted motor vehicles.

9.07 No Temporary Buildings No out-buildings, portable buildings, temporary or accessory buildings or structures, storage buildings, or tents, shall be erected, constructed or located upon any UNIT for storage or otherwise, without the prior written consent of the Architectural Control Committee.

9.09 Garbage and Trash Each OWNER shall regularly pick up all garbage, trash, refuse or rubbish on the OWNER's UNIT. Garbage, trash, refuse or rubbish shall be placed at the curbside in the front of the UNIT in appropriate trash containers to be collected by the city at any time after 6:00 A.M. on the days of collection by the city. All containers must be removed from the curbside by 7:00 P.M. on the days of collection. At all other times, containers, dumpsters or garbage facilities shall be stored inside a HOME or fenced-in area and screened from view and kept in a clean and sanitary condition. No noxious or offensive odors shall be permitted.

9.10 Automobiles and Vehicles Only automobiles, small trucks and vans may be parked within the SUBJECT PROPERTY overnight. Other types of vehicles, recreational vehicles, campers, boats and trailers, may not be parked or stored overnight, or for more than four (4) hours in any day. No vehicle shall be parked overnight if commercial equipment is exposed in or upon the vehicle. The foregoing restriction shall not be deemed to prohibit the temporary parking of commercial vehicles making delivery to or from, or used in connection with providing services to, any HOME. No motor vehicle shall be stored within the SUBJECT PROPERTY which is not in operating condition, and no major repairs of motor vehicles are permitted within the SUBJECT PROPERTY. Motorcycles are not permitted, except with the prior written consent of the ASSOCIATION which may be withdrawn at any time, and any permitted motorcycles must be equipped with appropriate noise muffling equipment so that the operation of same do not create an unreasonable annoyance to the residents of the SUBJECT PROPERTY.

9.11 Animals and Pets Only common household pets are permitted within any HOME. No pet is permitted which creates an unreasonable source of noise or annoyance to other residents of the SUBJECT PROPERTY. No pet may be kept outside of any HOME in the absence of any resident of the HOME. Any dog must be carried or kept on a leash when outside of a HOME. Any resident will be required to immediately pick up any animal waste deposited by his pet on any portion of the SUBJECT PROPERTY. The ASSOCIATION may require any pet to be immediately and permanently removed from the SUBJECT PROPERTY due to a violation of these restrictions.

9.12 Air Conditioning Units Only central air conditioning units are permitted, and no window, wall or portable air conditioning units are permitted.

9.13 Clotheslines and Outside Clothes Drying No clothesline or clothespole shall be erected and no clothes-drying is permitted which is visible from the exterior of the UNIT.

9.14 Nuisances and Annoyances No nuisances shall be permitted within the SUBJECT PROPERTY, and no use or practice which is an unreasonable source of annoyance to the residents within the SUBJECT PROPERTY or which shall interfere with the peaceful possession and proper use of the SUBJECT PROPERTY by its residents shall be permitted. No offensive or unlawful action shall be permitted, and all laws, zoning ordinances and regulations of all controlling governmental authorities shall be complied with at all times by the OWNERS.

9.15 Outside Antennas No outside antennas are permitted.

9.16 Signs No signs are permitted which are visible from the exterior of any UNIT, except as permitted by the ASSOCIATION.

9.17 Window Treatments Window treatments shall consist of drapery, blinds, decorative panels, or other tasteful window covering, and no newspaper, aluminum foil, sheets or other temporary window treatments are permitted, except for periods not exceeding one (1) week after an OWNER or tenant first moves into a HOME or when permanent window treatments are being cleaned or repaired.

9.18 Fences Without limiting the provisions of Paragraph 9.04, any fence constructed upon a UNIT shall be of a uniform type, approved by the Architectural Control Committee, and shall be maintained in good condition in a uniform manner and color by the OWNER.

9.19 Landscaping Without limiting the provisions of Paragraph 9.04, the Architectural Control Committee may grant permission to an OWNER to install special landscaping on the OWNER's UNIT, which when installed shall be maintained by the OWNER in good condition at all times. If the OWNER fails to perform such maintenance, the ASSOCIATION will have the right to remove the landscaping and install sod at the OWNER's expense.

9.20 Surface Water Management The surface water management system for the SUBJECT PROPERTY shall be installed, operated and maintained in accordance with all permits and approvals issued by any controlling governmental authority. Furthermore, the surface water management system shall not be adversely interfered with, changed or altered, except pursuant to permits or approvals issued by the controlling governmental authority.

9.21 Maintenance Except for portions of the SUBJECT PROPERTY to be maintained by the ASSOCIATION as elsewhere provided, each OWNER shall maintain, in an attractive, first-class condition, his UNIT and his HOME and all other improvements existing upon his UNIT from time to time.

9.22 Waiver The ASSOCIATION shall have the right to waive the application of one or more of these restrictions, or to permit a deviation from these restrictions, as to any UNIT where, in the discretion of the ASSOCIATION, circumstances exist which justify such waiver or deviation. In the event of any such waiver or permitted deviation, or in the event any party fails to enforce any violation of these restrictions, such actions or inactions shall not be deemed to prohibit or restrict the right of the ASSOCIATION, or any other person having the right to enforce these restrictions, from insisting upon strict compliance with respect to all other UNITS, nor shall any such actions be deemed a waiver of any of the restrictions contained herein as same may be applied in the future.

9.23 Exceptions The foregoing use and maintenance restrictions shall not apply with respect to the customary and usual activities in connection with the development of the SUBJECT PROPERTY and other improvements within the SUBJECT PROPERTY, nor to the sale of HOMES by DECLARANT or any other person or entity within any portion of the SUBJECT PROPERTY. Specifically, and without limitation, DECLARANT and any person or entity developing or initially constructing any HOMES within any portion of the SUBJECT PROPERTY shall have the right to: (i) construct any BUILDING, HOMES or improvements within the SUBJECT PROPERTY, and make any additions, alterations, improvements or changes thereto; (ii) maintain customary and usual sales, general office and construction operations within the SUBJECT PROPERTY; (iii) place, erect or construct portable temporary or accessory buildings or structures within the SUBJECT PROPERTY for sales, construction, storage or other purposes; (iv) temporarily deposit, dump or accumulate materials, trash, refuse and rubbish in connection with the development or construction of any portion of the SUBJECT PROPERTY; (v) post, display, inscribe or affix to the exterior of a HOME or upon any portion of the SUBJECT PROPERTY "For Sale" or other reasonable signs used in the development or construction of any portion of the SUBJECT PROPERTY and for promotional purposes.

10. PARTY WALLS

10.01 Party Walls Each common wall shared by two (2) HOMES which divides the two (2) HOMES shall be a party wall for the perpetual benefit of and use by the OWNERS of the two (2) HOMES, including their respective heirs, assigns, successors and grantees.

10.02 Easement for Encroachment Each OWNER hereby grants to the OWNER of the adjacent HOME(S) an easement for the continuance of any encroachment of the party wall on the adjoining HOME existing as a result of the construction of the party wall, or which may come into existence thereafter as a result of settling or shifting of the party wall, or as a result of repair or reconstruction of the party wall.

10.03 Repair and Maintenance Except as otherwise provided herein, each OWNER shall bear the responsibility to repair and maintain the unfinished surface of the exterior portion of the party wall which is located within his HOME. As to the structural and interior portions of the party wall, each OWNER shall share equally in the cost of the repair, maintenance and reconstruction of same. However, if any OWNER's negligence or willful misconduct causes damage to or destruction of a party wall, such negligent or willfully mischievous OWNER shall bear the entire cost of repairing or reconstructing the party wall. Any INSTITUTIONAL LENDER shall have the full right, at its option, to exercise the rights of its mortgagor as an OWNER hereunder and, in addition, the right to add to the outstanding balance of such mortgage any amounts paid by the mortgagee for repairs or reconstruction and not reimbursed to the mortgagee by the OWNER.

10.04 Easement for Repairs The ASSOCIATION shall have the right to enter into any HOME where necessary in connection with the repair, maintenance or reconstruction of a party wall, at reasonable times and upon reasonable notice. The OWNER of said UNIT shall be given opportunity to be present at this time. The foregoing right shall constitute an easement and a covenant running with the land.

10.05 Materials, Location and Size Whenever a party wall is to be repaired, maintained or reconstructed, same shall be performed with the same or similar materials and quality as the original party wall. Whenever a party wall or any part thereof shall be reconstructed, it shall be reconstructed such that it shall be of the same size and shall be of the same or similar materials and quality as used to initially construct the party wall.

10.06 Use Each OWNER shall have the right to the full use of the party wall for whatever purposes he chooses, subject to the limitation that such use shall not infringe upon the rights of the OWNER of the adjoining HOME, or his enjoyment of the party wall, or in any manner impair the structure of the party wall. The term "use" shall and does include normal interior usage such as paneling, plastering, painting, decorating and erection of tangent walls and shelving, but prohibits any form of alteration which would cause an aperture, hole, break or other displacement of the original structure forming the party wall. Additionally, each OWNER shall not cut windows or other openings in the party wall, nor make any hereinabove prohibited alterations, additions or structural changes to the party wall unless agreed upon by both OWNERS sharing the party wall.

11. DEFAULT

11.01 Monetary Defaults and Collection of Assessments

11.01.01 Interest If any ASSESSMENT is not paid within ten (10) days after the due date, the ASSOCIATION shall have the right to charge the defaulting OWNER interest at the maximum legally permissible rate from the due date until paid. If there is no due date applicable to any particular ASSESSMENT, then the ASSESSMENT shall be due ten (10) days after written demand by the ASSOCIATION.

11.01.02 Acceleration of ASSESSMENTS If any OWNER is in default in the payment of any ASSESSMENT owed to the ASSOCIATION for more than thirty (30) days after written demand by the ASSOCIATION, the ASSOCIATION upon written notice to the defaulting OWNER shall have the right to accelerate and require such defaulting OWNER to pay to the ASSOCIATION ASSESSMENTS for COMMON EXPENSES for the next twelve (12) month period, based upon the then existing amount and frequency of ASSESSMENTS for COMMON EXPENSES. In the event of such acceleration, the defaulting OWNER shall continue to be liable for any increases in the regular ASSESSMENTS for COMMON EXPENSES, for all special ASSESSMENTS for COMMON EXPENSES, and/or for all other ASSESSMENTS payable to the ASSOCIATION.

11.01.03 Lien for ASSESSMENTS The ASSOCIATION has a lien on each UNIT for unpaid ASSESSMENTS owed to the ASSOCIATION by the OWNER of such UNIT, and for interest and reasonable attorneys' fees incurred by the ASSOCIATION incident to the collection of the ASSESSMENT or enforcement of the lien, and all sums advanced and paid by the ASSOCIATION for taxes and payments on account of superior mortgages, liens or encumbrances in order to preserve and protect the ASSOCIATION's lien. The lien is effective from and after recording a claim of lien in the Public Records of Broward County, stating the description of the UNIT, the name of the record OWNER, and the amount due as of the recording of the claim of lien. A recorded claim of lien shall secure all sums set forth in the claim of lien, together with all ASSESSMENTS or other monies owed to the ASSOCIATION by the OWNER until the lien is satisfied. The lien is in effect until all sums secured by it have been fully paid or until the lien is barred by law. The claim of lien must be signed and acknowledged by an officer or agent of the ASSOCIATION. Upon payment in full of all sums secured by the lien, the person making the payment is entitled to a satisfaction of the lien.

11.01.04 Collection and Foreclosure The ASSOCIATION may bring an action in its name to foreclose a lien for ASSESSMENTS in the manner a mortgage of real property is foreclosed and may also bring an action to recover a money judgment for the unpaid ASSESSMENTS without waiving any claim of lien, and the applicable OWNER shall be liable to the ASSOCIATION for all costs and expenses incurred by the ASSOCIATION in connection with the collection of any unpaid ASSESSMENTS, and the filing, enforcement, and/or foreclosure of the ASSOCIATION'S lien, including reasonable attorneys' fees, and all sums paid by the ASSOCIATION for taxes and on account of any other mortgage, lien or encumbrance in order to preserve and protect the ASSOCIATION'S lien. The ASSOCIATION may settle and compromise the ASSOCIATION'S lien if the ASSOCIATION deems a settlement or compromise to be in the best interest of the ASSOCIATION.

11.01.05 Rental and Receiver If an OWNER remains in possession of his HOME and the

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claim of lien of the ASSOCIATION against his HOME is foreclosed, the court, in its discretion, may require the OWNER to pay a reasonable rental for the HOME, and the ASSOCIATION is entitled to the appointment of a receiver to collect the rent.

11.01.06 Subordination of Lien Where any person obtains title to a UNIT pursuant to the foreclosure of a mortgage of an INSTITUTIONAL LENDER, or where an INSTITUTIONAL LENDER accepts a deed to a UNIT in lieu of foreclosure of a mortgage of such lender, such acquirer of title, its successors and assigns, shall not be liable for any ASSESSMENTS or for other monies owed to the ASSOCIATION which are chargeable to the former OWNER of the UNIT and which became due prior to acquisition of title as a result of the foreclosure or deed in lieu thereof, unless the payment of such funds is secured by a claim of lien recorded prior to the recording of the foreclosed or underlying mortgage. The unpaid ASSESSMENTS or other monies are COMMON EXPENSES collectable equally from all of the OWNERS, including such acquirer and his successors and assigns. The new OWNER, from and after the time of acquiring such title, shall be liable for payment of all future ASSESSMENTS for COMMON EXPENSES and such other expenses as may be assessed to the OWNER's UNIT. Any person who acquires a UNIT, except through foreclosure of a mortgage of an INSTITUTIONAL LENDER or deed in lieu thereof (including without limitation persons acquiring title by sale, gift, devise, operation of law or by purchase at a judicial or tax sale), shall be liable for unpaid ASSESSMENTS and other monies due and owing by the former OWNER to the ASSOCIATION and shall not be entitled to occupancy of the HOME or enjoyment of the COMMON AREAS, or of the recreational facilities as same may exist from time to time, until such time as all unpaid ASSESSMENTS and other monies have been paid in full by or on behalf of the former OWNER.

11.01.07 Assignment of Claim and Lien Rights The ASSOCIATION shall have the right to assign its claim and lien rights for the recovery of any unpaid ASSESSMENTS and any other monies owed to the ASSOCIATION to any third party.

11.01.08 Unpaid ASSESSMENTS - Certificate Any OWNER shall have the right to require from the ASSOCIATION a certificate showing the amount of unpaid ASSESSMENTS against him with respect to his UNIT. Any INSTITUTIONAL LENDER shall have the same right as to any UNIT upon which it has a lien. Any person other than the OWNER who relies upon such certificate shall be protected thereby.

11.01.09 Application of Payments Any payments made to the ASSOCIATION by any OWNER shall first be applied towards any sums advanced and paid by the ASSOCIATION for taxes and payment on account of superior mortgages, liens or encumbrances which may have been advanced by the ASSOCIATION in order to preserve and protect its lien; next toward reasonable attorneys' fees incurred by the ASSOCIATION incidental to the collection of ASSESSMENTS and other monies owed to the ASSOCIATION by the OWNER and/or for the enforcement of its lien; next towards interest on any ASSESSMENTS or other monies due to the ASSOCIATION, as provided herein; and next towards any unpaid ASSESSMENTS owed to the ASSOCIATION, in the inverse order that such ASSESSMENTS were due.

11.02 Non-Monetary Defaults In the event of a violation by any OWNER (other than the non-payment of any ASSESSMENT or other monies) of any of the provisions of this DECLARATION, or of the ARTICLES or BYLAWS, the ASSOCIATION shall notify the OWNER of the violation, by written notice. If such violation is not cured as soon as practicable and in any event within seven (7) days after such written notice, or if the violation is not capable of being cured within such seven (7) day period, if the OWNER fails to commence and diligently proceed to completely cure such violation as soon as practicable within seven (7) days after written notice by the ASSOCIATION, the ASSOCIATION may, at its option:

11.02.01 Commence an action to enforce the performance on the part of the OWNER, or for such equitable relief as may be necessary under the circumstances, including injunctive relief; and/or

11.02.02 Commence an action to recover damages; and/or

11.02.03 Take any and all actions reasonably necessary to correct such failure, which action may include, where applicable, but is not limited to removing any addition, alteration, improvement or change which has not been approved by the Architectural Control Committee, or performing any maintenance required to be performed under this DECLARATION.

All expenses incurred by the ASSOCIATION in connection with the correction of any failure, plus a service charge of ten (10%) percent of such expenses, and all expenses incurred by the ASSOCIATION in connection with any legal proceedings commenced against any OWNER, including reasonable attorneys' fees, and court costs through trial and on appeal, shall be assessed against the applicable OWNER, and shall be due upon written demand by the ASSOCIATION. The ASSOCIATION shall have a lien for any such ASSESSMENT and any interest, costs or expenses associated therewith, including attorneys' fees incurred in connection with such ASSESSMENT, and may take such action to collect such ASSESSMENT or foreclose said lien as in the case and in the

manner of any other ASSESSMENT as provided above. Any such lien shall only be effective from and after the recording of a claim of lien in the Public Records of Broward County.

11.03 Negligence An OWNER shall be liable and may be assessed by the ASSOCIATION for the expense of any maintenance, repair or replacement rendered necessary by his neglect or carelessness, but only to the extent that such expense is not met by the proceeds of insurance carried by the ASSOCIATION. Such liability shall include any increase in fire insurance rates occasioned by use, misuse, occupancy or abandonment of a UNIT or HOME, or the COMMON AREAS.

11.04 Responsibility of an OWNER for Occupants, Licensees, Guests and Invitees Each OWNER shall be responsible for the willful acts and omissions of all guests, licensees and invitees of the OWNER, and in the event the acts or omissions of any of the foregoing shall result in any damage to the COMMON AREAS, or any liability to the ASSOCIATION, the OWNER shall be assessed for the same as in the case of any other ASSESSMENT, limited where applicable to the extent that the expense or liability is not met by the proceeds of insurance carried by the ASSOCIATION. Each OWNER shall be responsible for the negligent acts and omissions of all guest, licensees and invitees of the OWNER in accordance with the principles of applicable law pertaining to such acts or omissions. Furthermore, any violation of any of the provisions of this DECLARATION, of the ARTICLES or the BYLAWS by any guest, licensee or invitee of an OWNER, shall also be deemed a violation by the OWNER, and shall subject the OWNER to the same liability as if such violation was that of the OWNER.

11.05 Right of ASSOCIATION to Evict Occupants, Guests, Licensees and Invitees With respect to any person present in any HOME or any portion of the SUBJECT PROPERTY, other than an OWNER and the members of his immediate family permanently residing with him in the HOME, if such person shall materially violate any provision of this DECLARATION, the ARTICLES or the BYLAWS, or shall create a nuisance or an unreasonable and continuous source of annoyance to the residents of the SUBJECT PROPERTY, or shall willfully damage or destroy any COMMON AREAS or personal property of the ASSOCIATION, then upon written notice by the ASSOCIATION such person shall be required to immediately leave the SUBJECT PROPERTY and if such person does not do so the ASSOCIATION is authorized to commence an action to compel the person to leave the SUBJECT PROPERTY and, where necessary, to enjoin such person from returning. The expense of any such action, including attorneys' fees, may be assessed against the applicable OWNER who such person was visiting, or with whose permission such person was present on the SUBJECT PROPERTY, and the ASSOCIATION may collect such ASSESSMENT and have a lien for the same as elsewhere provided. The foregoing shall not be deemed to limit, modify or affect any other rights or remedies available to the ASSOCIATION, or any rights or remedies the ASSOCIATION may have with respect to similar actions by an OWNER or a member of his immediate family residing with him in the HOME.

11.06 No Waiver The failure of the ASSOCIATION to enforce any right, provision, covenant or condition which may be granted by this DECLARATION, the ARTICLES or the BYLAWS shall not constitute a waiver of the right of the ASSOCIATION to enforce such right, provision, covenant or condition in the future.

11.07 Rights Cumulative All rights, remedies and privileges granted to the ASSOCIATION pursuant to any terms, provisions, covenants or conditions of this DECLARATION, the ARTICLES or the BYLAWS, shall be deemed to be cumulative, and the exercise of any one or more shall neither be deemed to constitute an election of remedies, nor shall it preclude the ASSOCIATION thus exercising the same from executing such additional remedies, rights or privileges as may be granted or as it might have by law.

11.08 Enforcement By or Against other Persons This DECLARATION may be enforced by DECLARANT, for so long as DECLARANT owns any UNIT, or by the ASSOCIATION by any procedure at law or in equity against any person violating or attempting to violate any provision herein, to restrain such violation, to require compliance with the provisions contained herein, to recover damages or to enforce any lien created herein. The expense of any litigation to enforce this DECLARATION shall be borne by the person against whom enforcement is sought, provided such proceeding results in a finding that such person was in violation of this DECLARATION. In addition to the foregoing, any OWNER or INSTITUTIONAL LENDER shall have the right to bring an action to enforce this DECLARATION against any person violating or attempting to violate any provision herein, to restrain such violation or to require compliance with the provisions contained herein, but no OWNER shall be entitled to recover damages or to enforce any lien created herein as a result of a violation or failure to comply with the provisions contained herein by any person, and the prevailing party in any such action shall be entitled to recover its reasonable attorneys' fees.

12. TERM OF DECLARATION All of the foregoing covenants, conditions, reservations and restrictions shall run with the land and continue and remain in full force and effect at all times as against all OWNERS, their successors, heirs and assigns, regardless of how the OWNERS acquire title, for a period of fifty (50) years from the date of this DECLARATION, unless within

such time, Eighty percent (80%) of the OWNERS execute a written instrument declaring a termination of this DECLARATION (as it may have been amended from time to time). After such fifty (50) year period, unless sooner terminated as provided above, these covenants, conditions, reservations and restrictions shall be automatically extended for successive periods of ten (10) years each, until Eighty percent (80%) of the entire membership of the ASSOCIATION execute a written instrument declaring a termination of this DECLARATION (as it may have been amended from time to time). Any termination of this DECLARATION shall be effective on the date the instrument of termination is recorded in the Public Records of the County in which the SUBJECT PROPERTY is located; provided, however, that any such instrument, in order to be effective, must be approved in writing and signed by the DECLARANT so long as the DECLARANT owns any UNIT.

13. AMENDMENT

13.01 This DECLARATION may be amended from time to time by written instrument executed by Two-Thirds (2/3s) of the OWNERS. Provided, however, that any such amendment, in order to be effective, must be approved in writing and signed by the DECLARANT so long as the DECLARANT owns any UNIT. In order to be effective, any amendment to this DECLARATION must first be recorded among the Public Records of Broward County.

13.02 No amendment shall discriminate against any OWNER, or class or group of OWNERS, unless the OWNERS so affected join in the execution of the amendment. No amendment shall change the number of votes of any OWNER or increase any OWNER's proportionate share of the COMMON EXPENSES, unless the OWNERS affected by such amendment join in the execution of the amendment. No amendment may be made which adds or amends any material provision of this DECLARATION, the ARTICLES or the BYLAWS which establish, provide for, govern or regulate voting, ASSESSMENTS, ASSESSMENT liens, subordination of such liens, or any provisions which are for the express benefit of INSTITUTIONAL LENDERS, except for amendments granting or expanding the rights or protections of the foregoing, without the approval of INSTITUTIONAL LENDERS holding first mortgages encumbering at least fifty-one (51%) percent of the UNITS.

14. SPECIAL PROVISIONS REGARDING INSTITUTIONAL LENDERS

14.1 Notice of Action Upon written request to the ASSOCIATION by an INSTITUTIONAL LENDER identifying the name and address of the INSTITUTIONAL LENDER and the HOME number or address, any such INSTITUTIONAL LENDER will be entitled to timely written notice of:

14.1.1 Any condemnation loss or any casualty loss which affects a material portion of the SUBJECT PROPERTY or any UNIT on which there is a first mortgage held, insured or guaranteed by such INSTITUTIONAL LENDER, as applicable;

14.1.2 Any delinquency in the payment of ASSESSMENTS or other monies owed by an OWNER, or any other default in the performance by the OWNER of any obligation under this DECLARATION, the ARTICLES, or the BYLAWS, which OWNER'S HOME is subject to a first mortgage held, insured or guaranteed by such INSTITUTIONAL LENDER, which remains uncured for a period of sixty (60) days;

14.1.3 Any lapse, cancellation or material modification of any insurance policy or fidelity bond maintained by the ASSOCIATION;

14.1.4 Any proposed action which would require the consent of a specified percentage of INSTITUTIONAL LENDERS.

14.2 Consent of INSTITUTIONAL LENDERS Whenever the consent or approval of any, all or a specified percentage or portion of INSTITUTIONAL LENDERS is required by this DECLARATION, the ARTICLES, the BYLAWS or any applicable statute or law, to any amendment of the DECLARATION, the ARTICLES or the BYLAWS, or to any action of the ASSOCIATION, or to any other matter relating to the SUBJECT PROPERTY, the ASSOCIATION may request such consent or approval of such INSTITUTIONAL LENDERS by written request sent certified mail, return receipt requested (or equivalent delivery evidencing such request was delivered to and received by such holders). Any INSTITUTIONAL LENDER receiving such request shall be required to consent to or disapprove the matter for which the consent or approval is requested, in writing, by certified mail, return receipt requested (or equivalent delivery evidencing such request was delivered to and received by the ASSOCIATION), which response must be received by the ASSOCIATION within thirty (30) days after the INSTITUTIONAL LENDER receives such request, and if such response is not timely received by the ASSOCIATION, such INSTITUTIONAL LENDER shall be deemed to have consented to and approved the matter for which such approval or consent was requested. Such consent or approval given or deemed to have been given, where required, may be evidenced by an affidavit signed by all of the

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directors of the ASSOCIATION, which affidavit, where necessary, may be recorded in the Public Records of Broward County, and which affidavit shall be conclusive evidence that the applicable consent or approval was given as to the matters therein contained. The foregoing shall not apply where an INSTITUTIONAL LENDER is otherwise required to specifically join in an amendment to this DECLARATION.

14.3 Payment of Taxes and Insurance Any INSTITUTIONAL LENDER may pay any taxes or ASSESSMENTS which are in default, of any overdue insurance premiums, or may secure new insurance upon the lapse of a policy, and shall be owed immediate reimbursement therefor from the ASSOCIATION plus interest at the maximum legally permissible rate and any costs of collection, including attorneys' fees.

15 MISCELLANEOUS PROVISIONS

15.01 Conflict with ARTICLES or BYLAWS In the event of any conflict between the ARTICLES and the BYLAWS and/or this DECLARATION, this DECLARATION, the ARTICLES and the BYLAWS, in that order, shall control.

15.02 Authority of ASSOCIATION and Delegation Nothing contained in this DECLARATION shall be deemed to prohibit the ASSOCIATION from delegating to any one of its members, or to any officer, or to any committee or any other person, any power or right granted to the ASSOCIATION by this DECLARATION including, but not limited to, the right to approve any deviation from any use restriction, and the ASSOCIATION is expressly authorized to so delegate any power or right granted by this DECLARATION.

15.03 Rights of Successors in Interest and Assignees of DECLARANT Any right, power or authority granted to or reserved by the DECLARANT pursuant to this DECLARATION, the ARTICLES or the BYLAWS, either express or implied, may be exercised or enforced by any successor in interest or assignee of the DECLARANT. However, any purchaser of any UNIT from the DECLARANT shall not be deemed a successor in interest or an assignee of the DECLARANT for purposes of this Paragraph unless the DECLARANT specifically assigns its rights hereunder to such purchaser by written document recorded in the Public Records of Broward County.

15.04 Partial Invalidity The invalidation in whole or in part of any of these covenants, conditions, reservations and restrictions, or any section, subsection, sentence, clause, phrase, word or other provision of this DECLARATION shall not affect the validity of the remaining portions which shall remain in full force and effect.

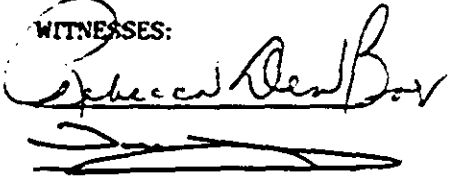
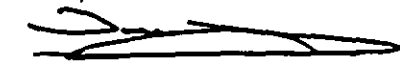
15.05 Gender Unless otherwise so required, the use of the singular shall include the plural and the plural shall include the singular, and the use of any gender shall be deemed to include all genders.

15.06 Real Covenants All of the restrictions, reservations, covenants, conditions and easements contained herein constitute covenants running with the land and shall rule perpetually unless terminated or amended as provided herein, and shall be binding upon all OWNERS as herein defined, and in consideration of receiving and by acceptance of any deed, grant, devise or mortgage, all grantees, devisees or mortgagees, their heirs, personal representatives, successors and assigns, and all parties claiming by, through or under such persons, agree to be bound by the provisions of this DECLARATION and the ARTICLES and BYLAWS. Both the burdens imposed and the benefits derived from this DECLARATION shall run with each UNIT.

15.07 Lot Owner's Rights Each lot OWNER is empowered to enforce the covenants.

IN WITNESS WHEREOF, DECLARANT has executed this DECLARATION this 3rd day of April, 1989.

WITNESSES:

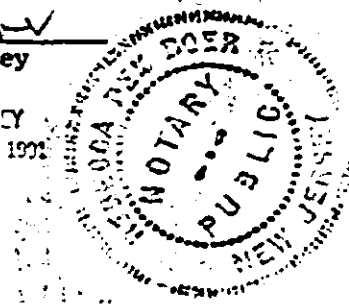

ROSS IMBRUGLIA

STATE OF NEW JERSEY)
) SS:
COUNTY OF)

The foregoing instrument was acknowledged before me this 3rd day of April
1989 by ROSS IMBRUGLIA.

My commission expires:
September 30, 1991


Notary Public, State of New Jersey
REBECCA DEN SOER
NOTARY PUBLIC OF NEW JERSEY
MY COMMISSION EXPIRES SEPT. 30, 1991



THIS INSTRUMENT PREPARED BY: ROBERT T. CARLILE, P.A. and
MICHELE M. LENOFF
1761 West Hillsboro Boulevard
Suite 405
Deerfield Beach, Florida 33442
(305) 427-9500

Lakeview.010

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February 27, 1989

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JOHN A. GRANT, JR., INC
Consulting Engineers
3333 North Federal Highway
Boca Raton, FL 33431

March 15, 1989
JG 100-2003

LEGAL DESCRIPTION
COMMON AREA
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO.

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, Broward County, Florida, said parcel being more particularly described as Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, LESS the following described portion thereof:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to the Point of Beginning; thence with a bearing of S. 00° 01' 44" E., a distance of 50.38 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 75.07 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 2.95 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.32 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.32 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 2.95 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 75.07 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.38 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet, more or less, to the Point of Beginning.

ALSO LESS the following described portion of said Parcel "A":

Commencing at the Southwest corner of said Parcel "A"; thence with a bearing of N. 00° 01' 44" W., along the West line of said Parcel "A" and also the East right-of-way line of Southeast 1st Way, a distance of 51.89 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 38.97 feet to the Point of Beginning; thence with a bearing of N. 00° 01' 44" W., a distance of 50.36 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 100.09 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.35 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.35 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 100.09 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.36 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet, more or less, to the Point of Beginning.

Said lands situate in the City of Deerfield Beach, Broward County, Florida.

Containing a net total of 0.701 Acre, more or less, and subject to easements and rights-of-way of record.

EXHIBIT "A"
To Declaration of Covenants and Restrictions of Lakeview Townhomes

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JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 18, 1988
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JG 100-2003

LEGAL DESCRIPTION
UNIT NO. 1, BUILDING "A"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to the Point of Beginning; thence with a bearing of S. 00° 01' 44" E., a distance of 25.37 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.37 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 888 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

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JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 18, 1988
Sheet 3 of 16
JG 100-2003

LEGAL DESCRIPTION
UNIT NO. 2, BUILDING "A"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.37 feet to the Point of Beginning; thence continue with a bearing of S. 00° 01' 44" E., a distance of 25.01 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.01 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 875 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

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JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 18, 1988
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JG 100-2003

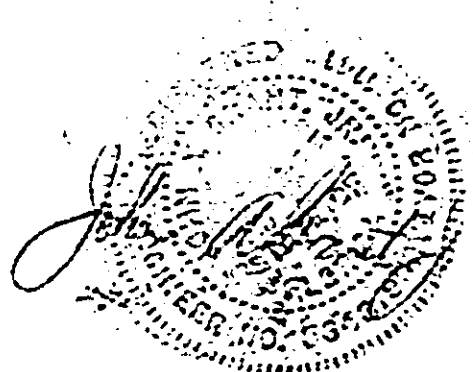
LEGAL DESCRIPTION
UNIT NO. 3, BUILDING "A"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.38 feet to the Point of Beginning; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.01 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.01 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 32.00 feet, more or less, to the Point of Beginning.

Containing 875 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

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JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 18, 1988
Sheet 5 of 16
JG 100-2003

LEGAL DESCRIPTION
UNIT NO. 4, BUILDING "A"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.38 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.01 feet to the Point of Beginning; thence continue with a bearing of S. 00° 01' 44" E., a distance of 25.04 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.04 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 876 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

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JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 18, 1988
Sheet 6 of 16
JG 100-2003

LEGAL DESCRIPTION
UNIT NO. 5, BUILDING "A"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.38 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.05 feet to the Point of Beginning; thence continue with a bearing of S. 00° 01' 44" E., a distance of 25.02 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.02 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 876 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

BK16322PC0082



JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

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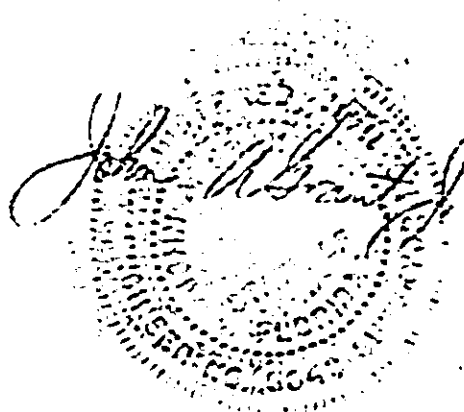
LEGAL DESCRIPTION
UNIT NO. 6, BUILDING "A"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.38 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 75.07 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 2.95 feet to the Point of Beginning; thence with a bearing of S. 00° 01' 44" E., a distance of 24.99 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 24.99 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 875 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

8K16322PG083



JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 18, 1988
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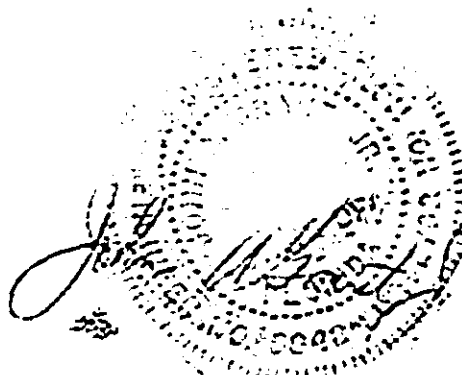
LEGAL DESCRIPTION
UNIT NO. 7, BUILDING "A"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Northeast corner of aforesaid Parcel "A"; thence with a bearing of N. 90° 00' 00" W., along the North line of said Parcel "A", a distance of 9.07 feet to a point; thence with a bearing of S. 00° 00' 00" E., a distance of 71.43 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 50.38 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 75.07 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 2.95 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 24.99 feet to the Point of Beginning; thence with a bearing of S. 00° 01' 44" E., a distance of 25.33 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.33 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 887 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

BK16322FG0084



4/18/88 ✓

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

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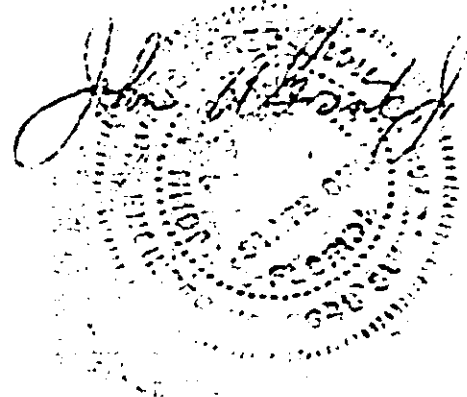
LEGAL DESCRIPTION
UNIT NO. 1, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Southwest corner of aforesaid Parcel "A"; thence with a bearing of N. 00° 01' 44" W., along the West line of said Parcel "A", a distance of 51.89 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 38.97 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.36 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 100.09 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.03 feet to the Point of Beginning; thence continue with a bearing of N. 00° 01' 44" W., a distance of 25.32 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.32 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 886 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way record.

DK16322PG. 085



FL 419188
7-12-21M.E.W.

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 19, 1988
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LEGAL DESCRIPTION
UNIT NO. 2, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Southwest corner of aforesaid Parcel "A"; thence with a bearing of N. 00° 01' 44" W., along the West line of said Parcel "A", a distance of 51.89 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 38.97 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.36 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 100.09 feet to the Point of Beginning; thence with a bearing of S. 89° 58' 16" W., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.03 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.03 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 32.00 feet, more or less, to the Point of Beginning.

Containing 876 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way record.

BK16322PG.086



✓ FL 4/19/1988 ✓

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Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

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LEGAL DESCRIPTION
UNIT NO. 3, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Southwest corner of aforesaid Parcel "A"; thence with a bearing of N. 00° 01' 44" W., along the West line of said Parcel "A", a distance of 51.89 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 38.97 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.36 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 75.07 feet to the Point of Beginning; thence continue with a bearing of N. 00° 01' 44" W., a distance of 25.02 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.02 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 876 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way record.

BK 16322PG 087



✓ FL 4/19/1988 ✓

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

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JG 100-2003

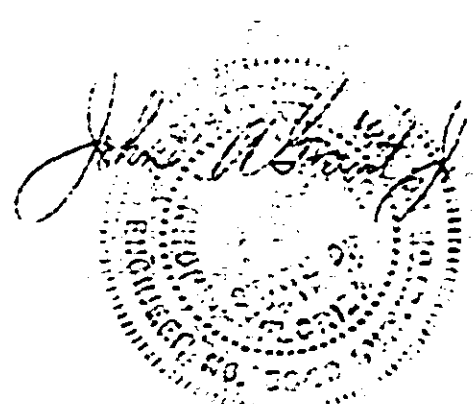
LEGAL DESCRIPTION
UNIT NO. 4, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Southwest corner of aforesaid Parcel "A"; thence with a bearing of N. 00° 01' 44" W., along the West line of said Parcel "A", a distance of 51.89 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 38.97 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.36 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.04 feet to the Point of Beginning; thence continue with a bearing of N. 00° 01' 44" W., a distance of 25.03 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.03 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 876 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way record.

BK16322PC 088



FL. 2111182 ✓

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

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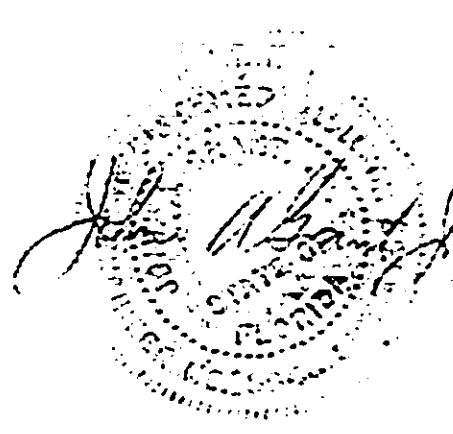
LEGAL DESCRIPTION
UNIT NO. 5, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Southwest corner of aforesaid Parcel "A"; thence with a bearing of N. 00° 01' 44" W., along the West line of said Parcel "A", a distance of 51.89 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 38.97 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 50.36 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 3.00 feet to a point; thence with a bearing of N. 00° 01' 44" W., a distance of 25.02 feet to the Point of Beginning; thence continue with a bearing of N. 00° 01' 44" W., a distance of 25.02 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.02 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 876 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way record.

BK 16322PG 089



FL 411911966 ✓

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 N. Federal Highway
Boca Raton, FL 33431

April 19, 1988
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JG 100-2003

LEGAL DESCRIPTION
UNIT NO. 6, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast quarter of the Southwest quarter of the Southwest quarter of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1 as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

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Containing 876 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way record.

BK 16322PG 090



JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 North Federal Highway
Boca Raton, Florida 33431

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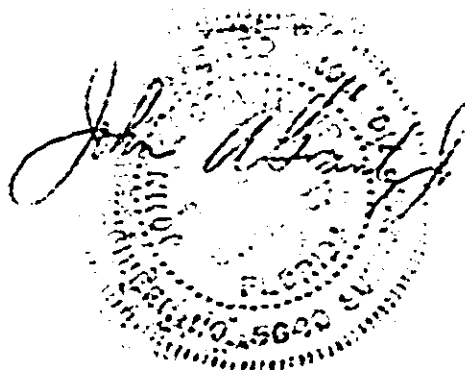
LEGAL DESCRIPTION
UNIT NO. 7, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast 1/4 of the Southwest 1/4 of the Southwest 1/4 of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1, as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

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Containing 875 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

BK16322PG0091



FL 4/19/1988 ✓

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 North Federal Highway
Boca Raton, Florida 33431

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JG 100-2003

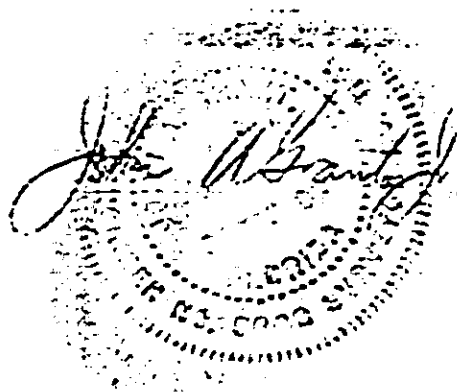
LEGAL DESCRIPTION
UNIT NO. 8, BUILDING "B"
PARCEL "A" OF THE PETER J. PEDICINI PLAT NO. 1

A parcel of land lying in a portion of the Northeast 1/4 of the Southwest 1/4 of the Southwest 1/4 of Section 6, Township 48 South, Range 43 East, City of Deerfield Beach, Broward County, Florida and also said land being in Parcel "A" of PETER J. PEDICINI PLAT NO. 1, as recorded in Plat Book 129, Page 28 of the Public Records of Broward County, Florida, said land being more particularly described as follows:

Commencing at the Southwest corner of aforesaid Parcel "A"; thence with a bearing of N. 00° 01' 44" W., along the West line of said Parcel "A", a distance of 51.89 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 38.97 feet to the Point of Beginning, thence with a bearing of N. 00° 01' 44" W., a distance of 25.35 feet to a point; thence with a bearing of N. 89° 58' 16" E., a distance of 35.00 feet to a point; thence with a bearing of S. 00° 01' 44" E., a distance of 25.35 feet to a point; thence with a bearing of S. 89° 58' 16" W., a distance of 35.00 feet, more or less, to the Point of Beginning.

Containing 887 square feet (0.020 Ac.), more or less, and subject to easements and rights-of-way of record.

BK16322PG0092





Department of State

I certify that the attached is a true and correct copy of the Articles of Incorporation of LAKEVIEW TOWNHOMES HOMEOWNERS ASSOCIATION, INC., a corporation organized under the Laws of the State of Florida, filed on March 28, 1989, as shown by the records of this office.

The document number of this corporation is N31408.

Given under my hand and the
Great Seal of the State of Florida,
at Tallahassee, the Capital, this the
28th day of March, 1989.



CR2E022 (6-88)

Jim Smith

Jim Smith
Secretary of State

BK16322PC0093

ARTICLES OF INCORPORATION
OF
LAKEVIEW TOWNHOMES HOMEOWNERS ASSOCIATION, INC.,
a Florida Corporation Not-for-Profit

FILED
NOV 23 1994
SECRETARY OF STATE
TALLAHASSEE, FLORIDA

The undersigned incorporator, for the purpose of forming a corporation not-for-profit pursuant to the laws of the State of Florida, Florida Statutes, Chapter 617, hereby adopts the following Articles of Incorporation:

PREAMBLE

ROSS IMBRUGLIA ("DECLARANT") owns certain property in Broward County, Florida (the "SUBJECT PROPERTY"), and intends to execute and record a Declaration of Covenants and Restrictions for Lakeview Townhomes (the "DECLARATION") which will affect the SUBJECT PROPERTY. This association is being formed as the association to administer the DECLARATION, and to perform the duties and exercise the powers pursuant to the DECLARATION, as and when the DECLARATION is recorded in the Public Records of Broward County, Florida, with these Articles of Incorporation attached as an exhibit. All of the definitions contained in the DECLARATION shall apply to these Articles of Incorporation and to the Bylaws of the Association.

ARTICLE I - NAME

The name of the corporation is "LAKEVIEW TOWNHOMES ASSOCIATION, INC.", a Florida corporation not-for profit, hereinafter referred to as the "ASSOCIATION."

ARTICLE II - PURPOSE

The purposes for which the ASSOCIATION is organized are as follows:

1. To operate as a corporation not-for-profit pursuant to Chapter 617 of the Florida Statutes.
2. To enforce and exercise the duties of the ASSOCIATION as provided in the DECLARATION.
3. To promote the health, safety, welfare, comfort, and social and economic benefit of the members of the ASSOCIATION.

ARTICLE III - POWERS AND DUTIES

The ASSOCIATION shall have the following powers and duties:

1. All of the common law and statutory powers of a corporation not-for-profit under the laws of the State of Florida.
2. To administer, enforce, carry out and perform all of the acts, functions, rights and duties provided in, or contemplated by, the DECLARATION, including but not limited to, the following:
 - a. To own, purchase, sell, mortgage, encumber, lease, administer, manage, operate, maintain, improve, repair and/or replace real and personal property.
 - b. To make and collect ASSESSMENTS against OWNERS of UNITS containing HOMES to defray the costs, expenses and losses incurred or to be incurred by the ASSOCIATION, and to use the proceeds thereof in the exercise of the ASSOCIATION'S powers and duties.
 - c. To enforce the provisions of the DECLARATION, these ARTICLES, and the BYLAWS.
 - d. To make, establish and enforce reasonable rules and regulations governing the use of COMMON AREAS, UNITS, HOMES and other property under the jurisdiction of the ASSOCIATION.
 - e. To grant and modify easements, and to dedicate property owned by the ASSOCIATION to any public or quasi public agency, authority or utility company for public, utility, drainage and cable television purposes.
 - f. To borrow money for the purposes of carrying out the powers and duties of the ASSOCIATION.
 - g. To exercise or delegate control over exterior alterations, additions, improvements, or changes in accordance with the terms of the DECLARATION.

OK 16322PG1094

h. To obtain insurance as provided by the DECLARATION.

i. To employ personnel necessary to perform the obligations, services and duties required of or to be performed by the ASSOCIATION and for proper operation of the properties for which the ASSOCIATION is responsible, or to contract with others for the performance of such obligations, services and/or duties.

ARTICLE IV - MEMBERS

1. The members of the ASSOCIATION shall consist of all of the record fee simple OWNERS of UNITS, including DECLARANT. Membership shall be established as to each UNIT upon the recording of the DECLARATION. Upon the transfer of ownership of fee simple title to, or fee simple interest in, a UNIT, whether by conveyance, devise, judicial decree, foreclosure, or otherwise, and upon the recordation among the public records in the county in which the SUBJECT PROPERTY is located of the deed or other instrument establishing the acquisition and designating the UNIT affected thereby, the new OWNER designated in such deed or other instrument shall thereupon become a member of the ASSOCIATION, and the membership of the prior OWNER as to the UNIT designated shall be terminated, provided, however, that the ASSOCIATION shall not have the responsibility or obligation of recognizing any such change in membership until it has been delivered a true copy of the applicable deed or other instrument, or is otherwise informed of the transfer of ownership of the UNIT. Prior to the recording of the DECLARATION, the incorporator shall be the sole member of the ASSOCIATION.

2. The share of each member in the funds and assets of the ASSOCIATION, and the COMMON SURPLUS, and any membership in this ASSOCIATION, cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to the UNIT for which that membership is established.

3. On all matters upon which the membership shall be entitled to vote, there shall be only one vote for each UNIT. In the event any UNIT is owned by more than one person and/or by an entity, the vote for such UNIT shall be cast in the manner provided by the BYLAWS. Any person or entity owning more than one UNIT shall be entitled to one vote for each UNIT owned.

4. The BYLAWS shall provide for an annual meeting of the members of the ASSOCIATION and shall make provision for special meetings.

ARTICLE V - TERM OF EXISTENCE

The ASSOCIATION shall have perpetual existence. If the ASSOCIATION is dissolved, the assets shall be dedicated to a public body or conveyed to a nonprofit organization with similar purpose.

ARTICLE VI - INCORPORATOR

The name and street address of the incorporator is:

ROSS IMBRUGLIA
2601 N.E. 46th Street
Lighthouse Point, Florida 33064

ARTICLE VII - DIRECTORS

1. The property, business and affairs of the ASSOCIATION shall be managed by a BOARD which shall consist of not less than three (3) directors or more than nine (9) directors. The BYLAWS may provide for a method of determining the number of directors from time to time. In the absence of a determination as to the number of directors, the BOARD shall consist of three (3) directors. Directors are not required to be members of the ASSOCIATION.

2. All of the duties and powers of the ASSOCIATION existing under the DECLARATION, these ARTICLES and the BYLAWS shall be exercised exclusively by the BOARD, its agents, contractors or employees, subject to approval by the members only when specifically required.

3. DECLARANT shall have the right to appoint all of the directors so long as the DECLARANT owns at least twenty (20%) percent of the UNITS within the SUBJECT PROPERTY, but in no event longer than three (3) years after the conveyance of the first UNIT containing a HOME by DECLARANT. DECLARANT may waive its right to elect one or more directors by written notice to the ASSOCIATION, and thereafter such directors shall be elected by the members. When the DECLARANT no longer owns at least twenty percent (20%) of the UNITS, or three years after the conveyance of the first UNIT by DECLARANT, whichever occurs earlier, the directors shall be elected by the members of the ASSOCIATION, including DECLARANT if DECLARANT owns any UNITS, in the manner provided in the BYLAWS.

4. Within sixty (60) days after the members of the ASSOCIATION are entitled to elect directors, the ASSOCIATION shall call, and give not less than thirty (30) days or more than forty (40) days notice of, a meeting of members to elect the directors which the members are then entitled to elect. The meeting may be called and the notice given by any OWNER if the ASSOCIATION fails to do so. Thereafter, the directors which the members are entitled to elect shall be elected at the annual meeting of the members.

5. Directors may be removed and vacancies on the BOARD shall be filled in the manner provided by the BYLAWS, however, any director appointed by the DECLARANT may only be removed by the DECLARANT, and any vacancy on the BOARD shall be appointed by the DECLARANT if, at the time such vacancy is to be filled, the DECLARANT is entitled to appoint the directors.

6. The names and addresses of the initial directors, who shall hold office until their successors are appointed or elected, are as follows:

Ross J. Imbruglia
2601 NE 46th Street
Lighthouse Point, FL 33064

Keith M. Imbruglia
2601 NE 46th Street
Lighthouse Point, FL 33064

Ross Imbruglia
2601 NE 46th Street
Lighthouse Point, FL 33064

The officers of the ASSOCIATION shall be a president, a vice president, a secretary, a treasurer and such other officers as the BOARD may from time to time by resolution create. The officers shall serve at the pleasure of the BOARD, and the BYLAWS may provide for the removal from office of officers, for filling vacancies and for the duties of the officers. The names of the officers who shall serve until their successors are designated by the BOARD are as follows:

President/Treasurer.....Ross J. Imbruglia
Vice President/Secretary.....Keith M. Imbruglia

ARTICLE IX - INDEMNIFICATION

1. The ASSOCIATION shall indemnify any person who was or is a party, or is threatened to be made a party, to any threatened, pending or contemplated action, suit or proceeding, whether civil, criminal, administrative or investigative (other than an action by or in the right of the ASSOCIATION) by reason of the fact that he is or was a director, employee, officer or agent of the ASSOCIATION, against expenses (including attorneys' fees and appellate attorneys' fees), judgments, fines and amounts paid in settlement actually and reasonably incurred by him in connection with the action, suit or proceeding if he acted in good faith and in a manner he reasonably believed to be in, or not opposed to, the best interest of the ASSOCIATION; and with respect to any criminal action or proceeding, if he had no reasonable cause to believe his conduct was unlawful; except, that no indemnification shall be made in respect to any claim, issue or matter as to which such person shall have been adjudged to be liable for gross negligence or willful misfeasance or malfeasance in the performance of his duty to the ASSOCIATION unless and only to the extent that the court in which the action or suit was brought shall determine, upon application, that despite the adjudication of liability, but in view of all the circumstances of the case, such person is fairly and reasonably entitled to indemnity for such expenses which the court shall deem proper. The termination of any action, suit or proceeding by judgment, order, settlement, conviction, or upon a plea of nolo contendere or its equivalent, shall not, in and of itself, create a presumption that the person did not act in good faith and in a manner which he reasonably believed to be in, or not opposed to, the best interest of the ASSOCIATION; and with respect to any criminal action or proceeding, that he had no reasonable cause to believe that his conduct was unlawful.

2. To the extent that a director, officer, employee or agent of the ASSOCIATION has been successful on the merits or otherwise in defense of any action, suit or proceeding referred to in Paragraph 1 above, or in defense of any claim, issue or matter therein, he shall be indemnified against expenses (including attorneys' fees and appellate attorneys' fees) actually and reasonably incurred by him in connection therewith.

3. Any indemnification under Paragraph 1 above (unless ordered by a court) shall be made by the ASSOCIATION only as authorized in the specific case upon a determination that indemnification of the director, officer, employee or agent is proper under the circumstances because he has met the applicable standard of conduct set forth in Paragraph 1 above. Such determination shall be made (a) by the BOARD by a majority vote of a quorum consisting of directors who were not parties to such action, suit or proceeding, or (b) if such quorum is not obtainable or, even if obtainable, if a quorum of disinterested directors so directs, by independent legal counsel in written opinion, or (c) by approval of the members.

4. Expenses incurred in defending a civil or criminal action, suit or proceeding may be paid by the ASSOCIATION in advance of the final disposition of such action, suit or proceeding as

authorized by the BOARD in the specific case upon receipt of an undertaking by or on behalf of the directors, officer, employee or agent to repay such amount unless it shall ultimately be determined that he is entitled to be indemnified by the ASSOCIATION as authorized herein.

5. The indemnification provided herein shall not be deemed exclusive of any other rights to which those seeking indemnification may be entitled under the laws of the State of Florida, any BYLAW, agreement, vote of members or otherwise; and as to action taken in an official capacity while holding office, shall continue as to a person who has ceased to be a director, officer, or agent and shall inure to the benefit of the heirs, executors and administrators of such a person.

6. The ASSOCIATION shall have the power to purchase and maintain insurance on behalf of any person who is or was a director, officer, employee or agent of the ASSOCIATION, or is or was serving at the request of the ASSOCIATION as a director, officer, employee or agent of another corporation, partnership, joint venture, trust or other enterprise, against any liability asserted against him and incurred by him in any such capacity, as arising out of his status as such, whether or not the ASSOCIATION would have the power to indemnify him against such liability under the provisions of this Article.

ARTICLE X - BYLAWS

The first BYLAWS shall be adopted by the BOARD and may be altered, amended or rescinded in the manner provided by the BYLAWS.

ARTICLE XI - AMENDMENTS

Amendments to these ARTICLES shall be proposed and adopted in the following manner:

1. A majority of the BOARD shall adopt a resolution setting forth the proposed amendment and directing that it be submitted to a vote at a meeting of the members, which may be the annual or a special meeting.

2. Written notice setting forth the proposed amendment or a summary of the changes to be effected thereby shall be given to each member entitled to vote thereon within the time and in the manner provided in the BYLAWS for the giving of notice of a meeting of the members. If the meeting is an annual meeting, the proposed amendment or such summary may be included in the notice of such annual meeting.

3. At such meeting, a vote of the members entitled to vote thereon shall be taken on the proposed amendment. The proposed amendment shall be adopted upon receiving the affirmative vote of eighty percent (80%) of the votes of the entire membership of the ASSOCIATION, including DECLARANT if DECLARANT owns any UNITS.

4. Any number of amendments may be submitted to the members and voted upon by them at any one meeting.

5. If all of the directors and all of the members eligible to vote sign a written statement manifesting their intention that an amendment to these ARTICLES be adopted, then the amendment shall thereby be adopted as though the above requirements had been satisfied.

6. No amendment shall make any changes in the qualifications for membership nor in the voting rights of members without approval by all of the members and the joinder of all INSTITUTIONAL LENDERS holding mortgages upon the UNITS. No amendment shall be made that is in conflict with the DECLARATION. Prior to the closing of the sale of all UNITS within the PROPERTY, no amendment shall make any changes which would in any way affect any of the rights, privileges, powers or options herein provided in favor of, or reserved to, the DECLARANT, unless the DECLARANT shall join in the execution of the amendment, including, but not limited to, any right of the DECLARANT to appoint directors pursuant to Article VII.

7. No amendment to these ARTICLES shall be made which discriminates against any OWNER(S), or affects less than all of the OWNERS within the PROPERTY, without the written approval of all of the OWNERS so discriminated against or affected.

8. Upon the approval of an amendment to these ARTICLES, the articles of amendment shall be executed and delivered to the Department of State as provided by law, and a copy certified by the Department of State shall be recorded in the public records of the county in which the PROPERTY is located.

9. Any amendment made prior to the conveyance of more than seventy-five percent (75%) of all of the UNITS within the SUBJECT PROPERTY by DECLARANT must be approved by the Federal Housing Administration or by the Veterans Administration if any mortgage encumbering any HOME is

guaranteed or insured by either such agency, provided that such amendment materially and adversely affects the OWNERS or materially and adversely affects the general scheme of development created by the DECLARATION. Such approval shall specifically not be required where the amendment is made to correct errors or omissions or is required by any INSTITUTIONAL LENDER so that such lender will make, insure or guarantee mortgage loans for the HOMES, or is required by any governmental authority.

ARTICLE XII

INITIAL REGISTERED OFFICE ADDRESS AND NAME OF REGISTERED AGENT

The initial registered office of the ASSOCIATION shall be at 2601 N.E. 46th Street, Lighthouse Point, Florida 33064. The initial registered agent of the ASSOCIATION at that address is ROSS IMBRUGLIA.

WHEREFORE, the incorporator, and the initial registered agent, have executed these ARTICLES on this 24 day of February, 1989.

Ross Imbruglia
ROSS IMBRUGLIA

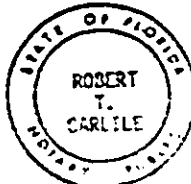
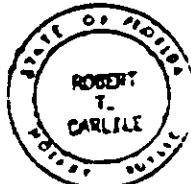
STATE OF FLORIDA)
) SS:
COUNTY OF BROWARD)

The foregoing instrument was acknowledged before me this 24 day of February, 1989, ROSS IMBRUGLIA, President of LAKEVIEW TOWNHOMES, INC., a Florida corporation, as Incorporator and as Registered Agent.

[Signature]
NOTARY PUBLIC, State of Florida at Large

My commission expires:

(Notary Seal)



BK16322P6098

BYLAWS
OF
LAKEVIEW TOWNHOMES HOMEOWNERS ASSOCIATION, INC.,
a Florida corporation not-for-profit

1. GENERAL PROVISIONS.

1.01 Identity. These are the BYLAWS of LAKEVIEW TOWNHOMES HOMEOWNERS ASSOCIATION, INC., hereinafter referred to as the "ASSOCIATION," a corporation not-for-profit formed under the laws of the State of Florida. The ASSOCIATION has been organized for the purposes stated in the ARTICLES and shall have all of the powers provided in these BYLAWS, the ARTICLES, the DECLARATION and any statute or law of the State of Florida, or any other power incident to any of the above powers.

1.02 Principal Office. The principal office of the ASSOCIATION shall be at such place as the BOARD may determine from time to time.

1.03 Fiscal Year. The fiscal year of the ASSOCIATION shall be the calendar year.

1.04 Seal. The seal of the ASSOCIATION shall have inscribed upon it the name of the ASSOCIATION, the year of its incorporation and the words "Corporation Not-for-Profit." The seal may be used by causing it, or a facsimile thereof, to be impressed, affixed or otherwise reproduced upon any instrument or document executed in the name of the ASSOCIATION.

1.05 Inspection of Books and Records. The books and records of the ASSOCIATION shall be open to inspection by all OWNERS or their authorized representatives, and all INSTITUTIONAL LENDERS, upon request, during normal business hours or under other reasonable circumstances. Such records of the ASSOCIATION shall include current copies of the DECLARATION, ARTICLES and BYLAWS, and any amendments thereto, any contracts entered into by the ASSOCIATION, and the books, records, ledgers and financial statements of the ASSOCIATION. The ASSOCIATION shall be required to make available to prospective purchasers of UNITS current copies of the DECLARATION, ARTICLES and BYLAWS, and the most recent audited annual financial statement of the ASSOCIATION.

1.06 Definitions. Unless the context otherwise requires, all terms used in these BYLAWS shall have the same meaning as are attributed to them in the DECLARATION and the ARTICLES.

2. MEMBERSHIP IN GENERAL.

2.01 Qualification. Pursuant to the ARTICLES, all of the record fee simple OWNERS of UNITS shall be members of the ASSOCIATION. Membership for each UNIT shall be established upon the recording of the DECLARATION. Prior to the recording of the DECLARATION, the incorporator shall be the sole member of the ASSOCIATION, but the incorporator's membership shall terminate upon the recording of the DECLARATION, unless the incorporator owns any UNIT(S).

2.02 Changes in Membership. The transfer of the ownership of any UNIT, either voluntarily or by operation of law, shall automatically terminate the membership of the prior owner, and the transferee or new owner shall automatically become a member of the ASSOCIATION. It shall be the responsibility of any such transferor and transferee of a UNIT to notify the ASSOCIATION of any change in the ownership of any UNIT, and the corresponding change in any membership, by delivering to the ASSOCIATION a copy of the deed or other instrument of conveyance which establishes a transfer of ownership. In the absence of such notification, the ASSOCIATION shall not be obligated to recognize any change in membership or ownership of a UNIT for purposes of notice, voting, ASSESSMENTS, or for any other purpose.

2.03 Member Register. The secretary of the ASSOCIATION shall maintain a register in the office of the ASSOCIATION showing the names and addresses of the members of the ASSOCIATION. It shall be the obligation of each member of the ASSOCIATION to advise the secretary of any change of address of the member, or of

EXHIBIT "C"

To Declaration of Covenants and Restrictions of Lakeview Townhomes

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the change of ownership of the member's UNIT, as set forth above. Any member who mortgages his UNIT shall notify the ASSOCIATION of the name and address of his mortgagee. Any member who satisfies the mortgage encumbering his UNIT shall also notify the ASSOCIATION thereof, and shall file a copy of the satisfaction of mortgage with the ASSOCIATION. The names and addresses of any such mortgagee shall also be maintained in the member register.

3. MEMBERSHIP VOTING.

3.01 Voting Rights. There shall be one vote cast for each UNIT. In the event any UNIT is owned by more than one person, or is owned by a person other than an individual, the vote for such UNIT shall be cast as set forth below, and votes shall not be divisible. In the event any member owns more than one UNIT, the member shall be entitled to one vote for each such UNIT.

3.02 Majority Vote and Quorum Requirements. The acts approved by a majority of the votes present in person or by proxy at a meeting at which a quorum is present shall be binding upon all members and OWNERS for all purposes, except where otherwise provided by law, in the DECLARATION, in the ARTICLES or in these BYLAWS. Unless otherwise so provided, at any regular or special meeting, the presence in person or by proxy of persons entitled to cast the votes for one-third (1/3) of the UNITS shall constitute a quorum.

3.03 Determination as to Voting Rights.

3.03.01 In the event any UNIT is owned by one person, his right to cast the vote for the UNIT shall be established by the record fee simple title to his UNIT.

3.03.02 In the event any UNIT is owned by more than one person or by an entity, the vote for the UNIT may be cast at any meeting by any co-owner of the UNIT provided, however, that in the event a dispute arises between the co-owners as to how the vote for the UNIT shall be cast, or in the event the co-owners are unable to concur in their decision upon any subject requiring a vote, they shall lose their right to cast the vote for the UNIT on the matter being voted upon at that meeting, but their membership shall be counted for purposes of determining the existence of a quorum. For purposes of this paragraph, the principals or partners of any entity (other than a corporation) owning a UNIT shall be deemed co-owners of the UNIT, and the directors and officers of a corporation owning a UNIT shall be deemed co-owners of the UNIT.

3.04 Proxies. Every member entitled to vote at a meeting of the members, or to express consent or dissent without a meeting, may authorize another person or persons to act on the member's behalf by a proxy signed by such member or his attorney-in-fact. Any proxy shall be delivered to the secretary of the meeting at or prior to the time designated in the order of business for delivering proxies. Any proxy shall be effective only for the specific meeting for which originally given and any lawfully adjourned meetings thereof. In no event shall any proxy be valid for a period longer than ninety (90) days after the date of the first meeting for which it was given. Every proxy shall be revocable at any time at the pleasure of the member executing it. Every proxy shall specifically set forth the name of the person voting by proxy, and the name of the person authorized to vote the proxy for him. Every proxy shall contain the date, time, and place of the meeting for which the proxy is given, and if a limited proxy, shall set forth those items which the proxy holder may vote, and the manner in which the vote is to be cast.

4. MEMBERSHIP MEETINGS.

4.01 Who May Attend. In the event any UNIT is owned by more than one person, all co-owners of the UNIT may attend any meeting of the members. In the event any UNIT is owned by a corporation, any director or officer of the corporation may attend any meeting of the members. However, the vote for any UNIT shall be cast in accordance with the provisions of Paragraph 3 above. INSTITUTIONAL LENDERS have the right to attend all members meetings.

4.02 Place. All meetings of the members shall be held at the principal office of the ASSOCIATION or at such other place and at such time as shall be designated by the BOARD and stated in the notice of meeting.

4.03 Notices. Written notice stating the place, day and hour of any meeting and, in the case of a special meeting, the purpose or purposes for which the meeting is called, shall be given to each member entitled to vote at such meeting not less than ten (10) nor more than sixty (60) days before the date of the meeting, by or at the direction of the president, the secretary or the officer or persons calling the meeting. For the purposes of determining members entitled to notice of, or to vote at, any meeting of the members of the ASSOCIATION, or in order to make a determination of the members for any other purpose, the BOARD shall be entitled to rely upon the member register as same exists ten (10) days prior to the giving of the notice of any meeting, and the BOARD shall not be required to take into account any changes in membership occurring after that date but may, in their sole and absolute discretion, do so. Notwithstanding the foregoing, if a UNIT is owned by more than one person or by an entity, only one notice shall be required to be given with respect to the UNIT, which may be given to any co-owner as defined in Paragraph 3.03.02 of these BYLAWS. Notice to any member or co-owner shall be sent to the UNIT of such member or co-owner, unless the UNIT OWNER(S) of the UNIT otherwise request.

4.04 Waiver of Notice. Whenever a notice is required to be given to any member under the provisions of the ARTICLES or these BYLAWS, or as otherwise provided by law, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, shall be equivalent to the giving of such notice. Attendance of a member at a meeting shall constitute a waiver of notice of such meeting, except when the member objects at the beginning of the meeting to the transaction of any business because the meeting is not lawfully called or convened.

4.05 Annual Meeting. The annual meeting for the purpose of electing directors and transacting any other business shall be held at eight o'clock p.m. on the second Tuesday in February of each year, or at such other time in the months of January or February of each year as shall be selected by the BOARD and as is contained in the notice of such meeting.

4.06 Special Meetings. Special meetings of the members may be called at any time by any director, the president or at the request, in writing, of not less than thirty-three and one-third percent (33-1/3%) of the members, or as otherwise provided by law. Such request shall state the purpose of the proposed meeting. Business transacted at all special meetings shall be confined to the subjects stated in the notice of meeting. Notice of any special meeting shall be given by the secretary, or other officer of the ASSOCIATION, to all of the members within thirty (30) days after same is duly called, and the meeting shall be held within forty-five (45) days after same is duly called.

4.07 Adjournments. Any meeting may be adjourned or continued by a majority vote of the members present in person or by proxy and entitled to vote, or if no member entitled to vote is present, then any officer of the ASSOCIATION, may adjourn the meeting from time to time. If any meeting is adjourned or continued to another time or place, it shall not be necessary to give any notice of the adjourned meeting, if the time and place to which the meeting is adjourned are announced at the meeting at which the adjournment is taken, and any business may be transacted at the adjourned meeting that might have been transacted at the original meeting. If the time and place to which the meeting is adjourned are announced at the meeting at which the adjournment is taken, notice of the adjourned meeting may be given to members present at the original meeting, without giving notice to the members which were not present at such meeting. Notwithstanding the foregoing, if a meeting is adjourned for lack of a quorum, notice of the adjourned meeting must be given to all members in order for the quorum requirement at the adjourned meeting, pursuant to Paragraph 3.02 of these BYLAWS, to be satisfied.

4.08 Organization. At each meeting of the members, the president, a vice president, or any person chosen by a majority of the members present, in that order, shall act as chairman of the meeting. The secretary, or in his absence or inability to act, any person appointed by the chairman of the meeting, shall act as secretary of the meeting.

4.09 Order of Business. The order of business at the annual meetings of the members shall be:

- 4.09.01 Determination of chairman of the meeting;
- 4.09.02 Calling of the role and certifying of proxies;
- 4.09.03 Proof of notice of meeting or waiver of notice;
- 4.09.04 Reading and disposal of any unapproved minutes;
- 4.09.05 Election of inspectors of election;
- 4.09.06 Determination of number of directors;
- 4.09.07 Election of directors;
- 4.09.08 Reports of directors, officers or committees;
- 4.09.09 Unfinished business;
- 4.09.10 New business; and
- 4.09.11 Adjournment

4.10 Minutes. The minutes of all meetings of the members of the ASSOCIATION shall be kept in a book available for inspection by the members of the ASSOCIATION or their authorized representatives, all INSTITUTIONAL LENDERS and the directors, at any reasonable time. The ASSOCIATION shall retain these minutes for a period of not less than seven (7) years.

4.11 Actions Without a Meeting. Any action required or permitted to be taken at any annual or special meeting of the members of the ASSOCIATION, may be taken without a meeting, without prior notice, and without a vote if a consent in writing, setting forth the action so taken, shall be signed by the members having not less than the minimum number of votes that would be necessary to authorize or take such action at a meeting at which all members entitled to vote thereon were present and voted. Within ten (10) days after obtaining such authorization by written consent, notice shall be given to those members who have not consented in writing. The notice shall fairly summarize the material features of the authorized action. If a UNIT is owned by more than one person or by a corporation, the consent for such UNIT need only be signed by one person who would be entitled to cast the vote for the UNIT as a co-owner pursuant to Paragraph 3.03.02 of these BYLAWS.

5. DIRECTORS.

5.01 Membership.

5.01.01 The affairs of the ASSOCIATION shall be managed by a BOARD of not less than two (2) nor more than nine (9) directors. So long as the DECLARANT is entitled to appoint the directors pursuant to the ARTICLES, the number of directors will be determined, and may be changed from time to time, by the DECLARANT by written notice to the BOARD. After the DECLARANT is no longer entitled to appoint the directors, the number of directors may be changed at any meeting where the members are to elect any directors (i) by the then existing BOARD, if prior to such meeting of the members the BOARD votes to change the number of directors and such change is indicated in the notice of the meeting sent to the members, or (ii) by the members at the meeting prior to the election of directors. If the number of directors on the BOARD is not changed, then the number of directors shall be the same as the number on the BOARD prior to such meeting (plus any unfilled vacancies created by the death, resignation or removal of a director). After DECLARANT waives its right to appoint directors there shall always be an odd number of directors.

5.02 Election of Directors by Members. Election of directors to be elected by the members of the ASSOCIATION shall be conducted in the following manner:

5.02.01 Within sixty (60) days after the members of the ASSOCIATION are entitled to elect directors, as provided in the ARTICLES, or within sixty (60) days after DECLARANT notifies the ASSOCIATION that it waives its right to appoint the directors, as provided in the ARTICLES, the ASSOCIATION shall call,

and give not less than thirty (30) days nor more than forty (40) days notice, of a special meeting of the members of the ASSOCIATION to elect any directors the members are then entitled to elect, or to replace the appropriate number of directors previously appointed by DECLARANT. Such special meeting will be called and the notice given by any member if the ASSOCIATION fails to do so. At such special meeting, the members shall be required to elect any directors which they are entitled to elect, and if they fail to do so, any directors appointed by DECLARANT which would have been replaced by any directors elected by the members of the ASSOCIATION may resign without further liability or obligation to the ASSOCIATION. In the event such a special meeting is called and held, at that meeting the members of the ASSOCIATION may elect not to hold the next annual meeting of the members if such next annual meeting would be held less than four (4) months after the date of the special meeting, and upon such election the next annual meeting of the members shall not be held.

5.02.02 The members shall elect directors at the annual members' meetings.

5.02.03 Prior to any annual meeting at which directors are to be elected by the members, the existing BOARD may nominate a committee, which committee shall nominate one person for each director to be elected by the members, on the basis that the number of directors to serve on the BOARD will not be altered by the members at the members' meeting. Nominations for additional directorships created at the meeting shall be made from the floor. Other nominations may be made from the floor.

5.02.04 The election of directors by the members shall be by ballot (unless dispensed with by unanimous consent) and by a plurality of the votes cast, each member voting being entitled to cast his votes for each of as many nominees as there are vacancies to be filled. There shall be no cumulative voting.

5.03 Term of Office. All directors elected by the members shall hold office until the next annual meeting of the members and until their successors are duly elected, or until such director's death, resignation or removal, as hereinafter provided or as otherwise provided by statute or by the ARTICLES.

5.04 Organizational Meeting. The newly elected BOARD shall meet for the purposes of organization, the election of officers and the transaction of other business immediately after their election or within ten (10) days of same at such place and time as shall be fixed by the directors at the meeting at which they were elected, and no further notice of the organizational meeting shall be necessary.

5.05 Regular Meetings. Regular meetings of the BOARD may be held at such time and place as shall be determined, from time to time, by a majority of the directors.

5.06 Special Meetings. Special meetings of the BOARD may be called by any director, or by the president, at any time.

5.07 Notice of Meetings. Notice of each meeting of the BOARD shall be given by the secretary, or by any other officer or director, which notice shall state the day, place and hour of the meeting. Notice of such meeting shall be delivered to each director either personally or by telephone or telegraph, at least forty-eight (48) hours before the time at which such meeting is to be held, or by first class mail, postage prepaid, addressed to such director at his residence, or usual place of business, at least three (3) days before the day on which such meeting is to be held. Notice of a meeting of the BOARD need not be given to any director who signs a waiver of notice either before or after the meeting. Attendance of a director at a meeting shall constitute a waiver of notice of such meeting and a waiver of any and all objections to the place of the meeting, the time of the meeting, or the manner in which it has been called or convened, except when a director states, at the beginning of the meeting, an objection to the transaction of any business because the meeting is not lawfully called or convened. Neither the business to be transacted at, nor the purpose of, any regular or special meeting of the BOARD need be specified in any notice or waiver of notice of such meeting.

5.08 Quorum and Manner of Acting. A majority of the directors determined in the manner provided in these BYLAWS shall constitute a quorum for the transaction of any business at a meeting of the BOARD. The act of the majority of the directors present at a meeting at which a quorum is present shall be the act of the BOARD, unless the act of a greater number of directors is required by statute, the DECLARATION, the ARTICLES, or by these BYLAWS. A director may join by written concurrence in any action taken at a meeting of the BOARD but such concurrence may not be used for the purposes of creating a quorum.

5.09 Adjourned Meetings. A majority of the directors present at a meeting, whether or not a quorum exists, may adjourn any meeting of the BOARD to another place and time. Notice of any such adjourned meeting shall be given to the directors who are present at the time of the adjournment, and, if the time and place of the adjourned meeting are not announced at the time of the adjournment, to the other directors. At any adjourned meeting, any business that might have been transacted at the meeting as originally called may be transacted without further notice.

5.10 Presiding Officer. The presiding officer of the BOARD meetings shall be the chairman of the BOARD if such an officer is elected; and if none, the president of the ASSOCIATION shall preside. In the absence of the presiding officer, the directors shall designate one of their members to preside.

5.11 Order of Business. The order of business at a BOARD meeting shall be:

- 5.11.01 Calling of role;
- 5.11.02 Proof of due notice of meeting;
- 5.11.03 Reading and disposal of any unapproved minutes;
- 5.11.04 Reports of officers and committees;
- 5.11.05 Election of officers;
- 5.11.06 Unfinished business;
- 5.11.07 New business; and
- 5.11.08 Adjournment

5.12 Minutes of Meetings. The minutes of all meetings of the BOARD shall be kept in a book available for inspection by the members of the ASSOCIATION, or their authorized representatives, all INSTITUTIONAL LENDERS, and the directors at any reasonable time. The ASSOCIATION shall retain these minutes for a period of not less than seven (7) years.

5.13 Committees. The BOARD may, by resolution duly adopted, appoint committees. Any committee shall have and may exercise such powers, duties and functions as may be determined by the BOARD from time to time, which may include any powers which may be exercised by the BOARD and which are not prohibited by law from being exercised by a committee.

5.14 Resignation. Any director may resign at any time by giving written notice of his resignation to another director or officer. Any such resignation shall take effect at the time specified therein or, if the time when such resignation is to become effective is not specified therein, immediately upon its receipt; and, unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make it effective.

5.15 Removal of Directors. Directors may be removed as follows:

5.15.01 Any director other than a director appointed by the DECLARANT may be removed by majority vote of the remaining directors, if such director (a) has been absent for the last three (3) consecutive BOARD meetings, and/or

adjournments and continuances of such meetings; or (b) is an OWNER and has been delinquent for more than thirty (30) days after written notice in the payment of ASSESSMENTS or other monies owed to the ASSOCIATION.

5.15.02 Any director other than a director appointed by the DECLARANT may be removed with or without cause by the vote of a majority of the members of the ASSOCIATION at a special meeting of the members called by not less than thirty-three and one-third percent (33-1/3%) of the members of the ASSOCIATION expressly for that purpose. The vacancy on the BOARD caused by any such removal may be filled by the members at such meeting or, if the members shall fail to fill such vacancy, by the BOARD, as in the case of any other vacancy on the BOARD.

5.16 Vacancies.

5.16.01 Vacancies on the BOARD may be filled by a majority vote of the directors then in office, though less than a quorum, or by a sole remaining director, and a director so chosen shall hold office until the next annual election and until his successor is duly elected, unless sooner displaced. If there are no directors, then a special election of the members shall be called to elect the directors. Notwithstanding anything contained herein to the contrary, DECLARANT at all times shall have the right to appoint the maximum number of directors permitted by the ARTICLES, and any vacancies on the BOARD may be filled by DECLARANT to the extent that the number of directors then serving on the BOARD which were appointed by the DECLARANT is less than the number of directors DECLARANT is then entitled to appoint.

5.16.02 In the event the ASSOCIATION fails to fill vacancies on the BOARD sufficient to constitute a quorum in accordance with these BYLAWS, any UNIT OWNER may apply to the Circuit Court of the County in which the PROPERTY is located for the appointment of a receiver to manage the affairs of the ASSOCIATION. At least thirty (30) days prior to applying to the Circuit Court, the UNIT OWNER shall mail to the ASSOCIATION a notice describing the intended action giving the ASSOCIATION the opportunity to fill the vacancies. If during such time the ASSOCIATION fails to fill the vacancies, the UNIT OWNER may proceed with the petition. If a receiver is appointed, the ASSOCIATION shall be responsible for the salary of the receiver, court costs, and attorneys' fees. The receiver shall have all powers and duties of a duly constituted member of the BOARD, and shall serve until the ASSOCIATION fills vacancies on the BOARD sufficient to constitute a quorum.

5.17 Directors Appointed by DECLARANT. Notwithstanding anything contained herein to the contrary, DECLARANT shall have the right to appoint the maximum number of directors in accordance with the privileges granted to the DECLARANT pursuant to the ARTICLES. All directors appointed by DECLARANT shall serve at the pleasure of DECLARANT, and DECLARANT shall have the absolute right, at any time, and in his sole discretion, to remove any director appointed by him, and to replace such director with another person to serve on the BOARD. Replacement of any director appointed by DECLARANT shall be made by written instrument delivered to any officer or any other director, which instrument shall specify the name of the person designated as successor director. The removal of any director and the designation of his successor by DECLARANT shall become effective immediately upon delivery of such written instrument by DECLARANT.

5.18 Compensation. The directors shall not be entitled to any compensation for serving as directors; provided however, the ASSOCIATION may reimburse any director for expenses incurred on behalf of the ASSOCIATION, without approval of the members.

5.19 Powers and Duties. The directors shall have the right to exercise all of the powers and duties of the ASSOCIATION, express or implied, existing under these BYLAWS, the ARTICLES, the DECLARATION, or as otherwise provided by statute or law.

6. OFFICERS.

6.01 Members and Qualifications. The officers of the ASSOCIATION shall include a president, a vice president, a treasurer and a secretary, and such other officers as the BOARD may determine, all of whom shall be elected

by the directors and may be pre-emptively removed from office with or without cause by the directors. Any person may hold two or more offices except that the president shall not also be the secretary. The BOARD may, from time to time, elect such other officers and designate their powers and duties as the BOARD shall find to be appropriate to manage the affairs of the ASSOCIATION from time to time. Each officer shall hold office until the meeting of the BOARD following the next annual meeting of the members, or until his successor shall have been duly elected and shall have qualified, or until his death, or until he shall have resigned, or until he shall have been removed, as provided in these BYLAWS.

6.02 Resignations. Any officer may resign at any time by giving written notice of his resignation to any director or officer. Any such resignation shall take effect at the time specified therein or, if there is no time specified therein, immediately upon its receipt; and, unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make such resignation effective.

6.03 Vacancies. A vacancy in any office, whether arising from death, resignation, removal or any other cause may be filled for the unexpired portion of the term of the office which shall be vacant in the manner prescribed in these BYLAWS for the regular election or appointment of such office.

6.04 The President. The president shall be the chief executive officer of the ASSOCIATION. He shall have all of the powers and duties which are usually vested in the office of president of an association or corporation including, but not limited to, the power to appoint committees from among the members from time to time, as he may in his discretion deem appropriate to assist in the conduct of the affairs of the ASSOCIATION.

6.05 The Vice President. The vice president shall, in the absence or disability of the president, exercise the powers and perform the duties of the president. He shall also assist the president generally and exercise such other powers and perform such other duties as may be prescribed by the directors.

6.06 The Secretary. The secretary shall prepare and keep the minutes of all proceedings of the directors and the members. He shall attend to the giving and serving of all notices to the members and directors and other notices required by law. He shall have custody of the seal of the ASSOCIATION and affix the same to instruments requiring a seal when duly executed. He shall keep the records of the ASSOCIATION, except those of the treasurer, and shall perform all other duties incident to the office of secretary of an association, and as may be required by the directors or the president.

6.07 The Treasurer. The treasurer shall have custody of all property of the ASSOCIATION, including funds, securities, and evidences of indebtedness. He shall keep books of account for the ASSOCIATION in accordance with good accounting practices, which, together with substantiating papers, shall be made available to the BOARD for examination at reasonable times. He shall submit a Treasurer's Report to the BOARD at reasonable intervals and shall perform all other duties incident to the office of treasurer. He shall collect all ASSESSMENTS and shall report to the BOARD the status of collections as requested.

6.08 Compensation. The officers shall not be entitled to compensation unless the members of the ASSOCIATION specifically vote to compensate them. However, neither this provision, nor the provision that directors will not be compensated, shall preclude the BOARD from employing a director or an officer as an employee of the ASSOCIATION and compensating such employee, nor shall they preclude the ASSOCIATION from contracting with a director or an officer for the management of property subject to the jurisdiction of the ASSOCIATION or for the provision of services to the ASSOCIATION, and in either such event to pay such director or officer a reasonable fee for the provision of such services.

7. FINANCES AND ASSESSMENTS.

7.01 Assessment Roll. The ASSOCIATION shall maintain an ASSESSMENT roll for each UNIT, designating the name and current mailing address of the OWNER, the amount of each ASSESSMENT against such OWNER, the dates and amounts in

which the ASSESSMENTS come due, the amounts paid upon the account of the OWNER, and the balance due.

7.02 Depositories. The funds of the ASSOCIATION shall be deposited in such banks and depositories as may be determined and approved by appropriate resolutions of the BOARD from time to time. Funds shall be withdrawn only upon checks and demands for money signed by such officers, directors, or other persons as may be designated by the BOARD.

7.03 Application of Payments and Commingling of Funds. All sums collected by the ASSOCIATION from ASSESSMENTS may be commingled in a single fund or divided into more than one fund, as determined by the BOARD.

7.04 Accounting Records and Reports. The ASSOCIATION shall maintain accounting records in accordance with generally accepted accounting principles. The records shall be open to inspection by OWNERS or their authorized representatives and all INSTITUTIONAL LENDERS at reasonable times. The records shall include, but not be limited to, (a) a record of all receipts and expenditures, and (b) the ASSESSMENT roll of the members referred to above. The BOARD may, and upon a vote of the majority of the members shall, conduct a review of the accounts of the ASSOCIATION by a certified public accountant, and if such a review is made, a copy of the report shall be furnished to each member, or their authorized representative and all INSTITUTIONAL LENDERS, within fifteen (15) days after same is completed.

7.05 Reserves. The budget of the ASSOCIATION shall provide for a reserve fund for the periodic maintenance, repair and replacement of improvements to the COMMON AREAS and to those other portions of the SUBJECT PROPERTY which the ASSOCIATION is obligated to maintain.

8. PARLIAMENTARY RULES.

8.01 Roberts' Rules of Order (latest edition) shall govern the conduct of the ASSOCIATION meetings when not in conflict with any DECLARATION, the ARTICLES or these BYLAWS.

9. AMENDMENTS.

Except as otherwise provided, these BYLAWS may be amended in the following manner:

9.01 Notice. Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is to be considered.

9.02 Initiation. A resolution to amend these BYLAWS may be proposed either by any director, or by or at the direction of twenty percent (20%) or more of the members of the ASSOCIATION.

9.03 Adoption of Amendments. A resolution for the adoption of the proposed amendment shall be adopted by not less than sixty-six and two-thirds percent (66-2/3%) of the votes of the entire membership of the ASSOCIATION.

9.04 Restriction on Amendments. No amendment shall make any changes in the qualification for membership nor in the voting rights or property rights of members without approval by all of the members and the joinder of all INSTITUTIONAL LENDERS. No amendment shall be made that is in conflict with the DECLARATION or the ARTICLES. No amendment to these BYLAWS shall be made which discriminates against any OWNER(S), or affects less than all of the OWNERS without the written approval of all of the OWNERS so discriminated against or affected.

9.05 Execution and Recording. No modification of, or amendment to, the BYLAWS shall be valid until recorded in the public records of Broward County.

RECORDED IN THE OFFICIAL RECORDS BOOK
OF BROWARD COUNTY, FLORIDA
L. A. HESTER
COUNTY ADMINISTRATOR